

**NORTH CAROLINA
OCCUPATIONAL SAFETY AND HEALTH**

Program Statistics

October 2020–September 2021



**Occupational Safety and Health Division
1101 Mail Service Center
Raleigh, NC 27699-1101**

Josh Dobson
Commissioner of Labor

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Acknowledgments

This report was prepared by the Planning, Statistics and Information Management Bureau of the Occupational Safety and Health Division and the Publications Bureau of the N.C. Department of Labor.

Photocopying and wide dissemination of this report are encouraged.

NORTH CAROLINA OCCUPATIONAL SAFETY AND HEALTH PROGRAM DESCRIPTION

Pursuant to Section 18 of the Williams-Steiger Occupational Safety and Health Act of 1970, the General Assembly of North Carolina in 1973 selected the N.C. Department of Labor, under the commissioner of labor, as the designated agency to administer the state's Occupational Safety and Health Act. The North Carolina program is monitored and funded, in part, by the U.S. Department of Labor, Occupational Safety and Health Administration. The expressed purpose of the state act is to assure, so far as possible, every working man and woman in the state of North Carolina safe and healthful working conditions and to preserve human resources. The General Assembly created the Occupational Safety and Health Division within the Department of Labor to carry out the provisions of the act. On Dec. 10, 1997, the U.S. Department of Labor awarded North Carolina final approval under Section 18(e) of the Occupational Safety and Health Act of 1970 as having a "fully effective" state OSHA program, the highest level of approval possible.

The NCDOL Occupational Safety and Health Division covers all industries in North Carolina except: the federal government; employees subject to the Atomic Energy Act of 1954, the Federal Coal Mine Safety and Health Act of 1969, the Federal Metal and Nonmetallic Mine Safety Act, and the Federal Railroad Safety Act of 1970; maritime industries; and those employees whose employer is within that class and type of employment that does not permit federal funding on a matching basis to the state in return for state enforcement of all occupational safety and health issues. The Occupational Safety and Health Division endeavors to focus its resources toward identifying and eliminating safety and health hazards in industries with the highest injury and illness rates.

The Occupational Safety and Health Division consists of the director's administrative staff and six organizational bureaus. The bureaus are East Compliance; West Compliance; Education, Training and Technical Assistance; Consultative Services; Planning, Statistics and Information Management; and Agricultural Safety and Health. The state Advisory Council on Occupational Safety and Health provides the commissioner of labor with advice in regard to the administration of the act. The N.C. Occupational Safety and Health Review Commission, appointed by the governor, provides an appellate opportunity to people adversely affected by safety and health citations.

The primary activities of the division are as follows:

- To conduct public and private sector safety and health inspections to ensure compliance with the act.
- To provide technical assistance and information to employers, employees and organizations on all aspects of safety and health program development and administration.
- To provide on-site consultative services to small public and private sector employers.
- To provide education and training on safety and health to public and private sector employees.
- To review, develop and promulgate standards, rules, procedures and program directives as they apply to the proper administration of the act.

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N.C. Department of Labor
Occupational Safety and Health Division
 October 2020–September 2021

Executive Summary

Background: The Occupational Safety and Health Administration (OSHA) of the U.S. Department of Labor monitors state programs effectiveness by making comparisons of state data versus federal data. This report highlights North Carolina’s occupational safety and health program experience through a comparison to other state programs and the federal program experience for federal fiscal year 2021, Oct. 1, 2020–Sept. 30, 2021.

North Carolina is one of 22 jurisdictions (21 states and one territory—see Text Table 1) with an approved state program for occupational safety and health. Thirty states plus the District of Columbia operate under the exclusive jurisdiction of federal OSHA, with the exception of Connecticut, Illinois, Maine, New Jersey, New York and the Virgin Islands, which have state plans for the public sector only (see Text Table 1). Throughout the report, we compare the North Carolina program experience to the 22 state programs and the 31 federal jurisdictions. Comparisons of the number of establishments covered by the state administered occupational safety and health programs are presented in the Text Tables 2 and 3, respectively.

Methodology: Report data on total numbers and dollar amounts were generated from “United States Department of Labor, Occupational Safety and Health Administration, Inspection Report, October 1, 2020–September 30, 2021.” Averages and percentages were calculated by the Planning, Statistics and Information Management Bureau, and the graphs and charts were prepared by the Publications Bureau, N.C. Department of Labor.

Highlights: The following summary highlights some of the comparisons contained in this report.

Text Table 1

STATES AND TERRITORIES WITH APPROVED PLANS FOR OCCUPATIONAL SAFETY AND HEALTH		STATES AND TERRITORIES OPERATED UNDER EXCLUSIVE FEDERAL JURISDICTION	
Alaska	New Mexico	Alabama	Montana
Arizona	North Carolina	Arkansas	Nebraska
California	Oregon	Colorado	New Hampshire
Hawaii	Puerto Rico	Connecticut ¹	New Jersey ¹
Indiana	South Carolina	Delaware	New York ¹
Iowa	Tennessee	District of Columbia	North Dakota
Kentucky	Utah	Florida	Ohio
Maryland	Vermont	Georgia	Oklahoma
Michigan	Virginia	Idaho	Pennsylvania
Minnesota	Washington	Illinois ¹	Rhode Island
Nevada	Wyoming	Kansas	South Dakota
		Louisiana	Texas
		Maine ¹	Virgin Islands ¹
		Massachusetts	West Virginia
		Mississippi	Wisconsin
		Missouri	

NOTE: 1. Connecticut, Illinois, Maine, New Jersey, New York, and the Virgin Islands state plans are public sector only.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Executive Summary (continued)

Inspections

During fiscal year 2021 (October 2020–September 2021), North Carolina conducted 2,218 inspections, 1,432 more than the average federal jurisdiction and 802 more than the average state program.

Of North Carolina's 2,218 inspections, 1,257 (57percent) were safety and 961 (43 percent) were health. In the average federal jurisdiction 82 percent were safety and 18 percent were health, while in the average state program 71 percent were safety and 29 were health.

In the inspection type category, North Carolina programmed inspections accounted for 56 percent of inspection activity, compared to 44 percent in the average federal jurisdiction and 36 percent in the average state program. Complaint inspections accounted for 20 percent of inspections in North Carolina, 20 percent in the average federal jurisdiction and 25 percent in the average state program for fiscal year 2021.

In the inspection by industry group, North Carolina accounted for 17 percent of inspections in manufacturing, compared to 19 percent in the average federal jurisdiction and 15 percent in the average state program. However, North Carolina conducted 53 percent of inspections in construction compared to 52 percent in the average federal jurisdiction and 38 percent in the average state program data for fiscal year 2021.

North Carolina conducted 6 percent of inspections in the public sector compared to 12 percent in the average state program for federal fiscal year 2021. Federal OSHA does not cover the public sector.

Violations

North Carolina cited 4,312 total violations, an 8 percent increase from the previous year. The average federal jurisdiction cited 1,012 violations, a 22 percent decrease, and the average state program cited 2,569 with a 14 percent decrease from the previous year.

Overall, North Carolina cited more violations per inspection (3.2) than the average federal jurisdiction (2.3) and the same as the average state program (3.2). North Carolina cited more serious violations (2,569) in FY 2021 than the average federal jurisdiction (737) and more than the average state program (1,341). North Carolina also cited more nonserious violations (1,519) in FY 2021 than the average federal jurisdiction (206) and less than the average state program (1,101).

Penalty Assessments

Total penalty assessments in North Carolina were \$7,123,571 in FY 2021, which was higher than the average federal jurisdiction (\$5,107,476) and higher than the average state program (\$4,965,752). North Carolina assessed a total of \$325,778 in penalties for violations in the public sector in FY 2021.

North Carolina's average penalty per violation was lower than the average state program per serious violation (\$1,961 vs. \$2,407), per repeat violation (\$4,825 vs. \$5,124), per nonserious violation (\$250 vs. \$423), and per failure-to-abate- violation (\$0 vs. \$21,197). However, North Carolina cited more penalty violations than the average state program per willful violation (\$34,612 vs. \$27,946).

The average federal jurisdiction penalty per violation was higher than North Carolina's per serious violation (\$4,415 vs. \$1,961), per repeat violation (\$13,120 vs. \$4,825), per willful violation (\$64,262 vs. \$34,612), per nonserious violation (\$1,819 vs. \$250), and per failure-to-abate- violation (\$31,193 vs. \$0).

Litigation

In North Carolina, 4.8 percent of the inspections with citations were contested in FY 2021, lower than FY 2020 (7.1). The average federal jurisdiction had 8.7 percent of the inspections with citations contested, while the average state program had 18.2 percent of the inspections with citations contested.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Executive Summary (continued)

Consultation

The North Carolina consultation program conducted 1,425 total visits in FY 2021. This was a 11 percent increase from FY 2020. Of 1,425 traditional visits, 84 percent were initial visits, 10 percent were training/assistance visits, and 6 percent were follow up visits. The industry mix for the traditional consultative visits in FY 2021 was 22 percent manufacturing, 38 percent construction, 24 percent other and 16 percent public sector visits.

The consultation program continues to participate in a Region IV project that uses workers' compensation data to target companies for consultation. Participation in this project requires a safety and health program assessment and that the company agree to a three-year commitment with the Department of Labor.

Education, Training and Technical Assistance

The Education, Training and Technical Assistance Bureau distributed 21,284 OSHA-related publications in FY 2021, a 3 percent increase from FY 2020 with 20,621, and a 70 percent decrease from FY 2019 with 70,627. In 2021, the Education, Training and Technical Assistance Bureau provided training for 7,597 employers and employees.

The Carolina Star Program awarded Star program status to one new company and awarded recertification to 15 existing companies in FY 2021. There is currently a total of 146 companies in the Star programs.

Fatalities

The NCDOL Occupational Safety and Health Division evaluated and investigated a total of 89 occupational fatalities that occurred during FY 2021. Of the 89 investigated fatalities in FY 2021, 9 percent were related to being "crushed by" an object, 12 percent were related to "falls," 20 percent were related to being "struck by" an object, 6 percent were related to "electrocutions," and 53 percent were related to "other." There was a total of 34 COVID-19 related fatality cases (included within the "other" category), which accounted for 38 percent of the "other" cases.

Construction Inspections Emphasis

The Occupational Safety and Health Division established a construction special emphasis program (SEP) to decrease fatalities in the construction industry (SIC 15-17 and NAICS 23). The North Carolina counties included in the program are: Carteret, Edgecombe, Forsyth, Guilford, Iredell, Mecklenburg, Orange, Pitt, Robeson, Wake and Wilkes. The Construction Industry accounted for 1,190 inspections during FY 2021 in North Carolina. Of the 1,190 inspections, 64 percent were safety and 36 percent were health. Incompliance inspections totaled 37 percent of all activity within the industry, and 63 percent of all inspections had citations issued. The construction industry was cited for 1,715 serious, willful, and repeat violations during FY 2021. A total of 729 inspections were conducted in the SEP counties.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Text Table 2

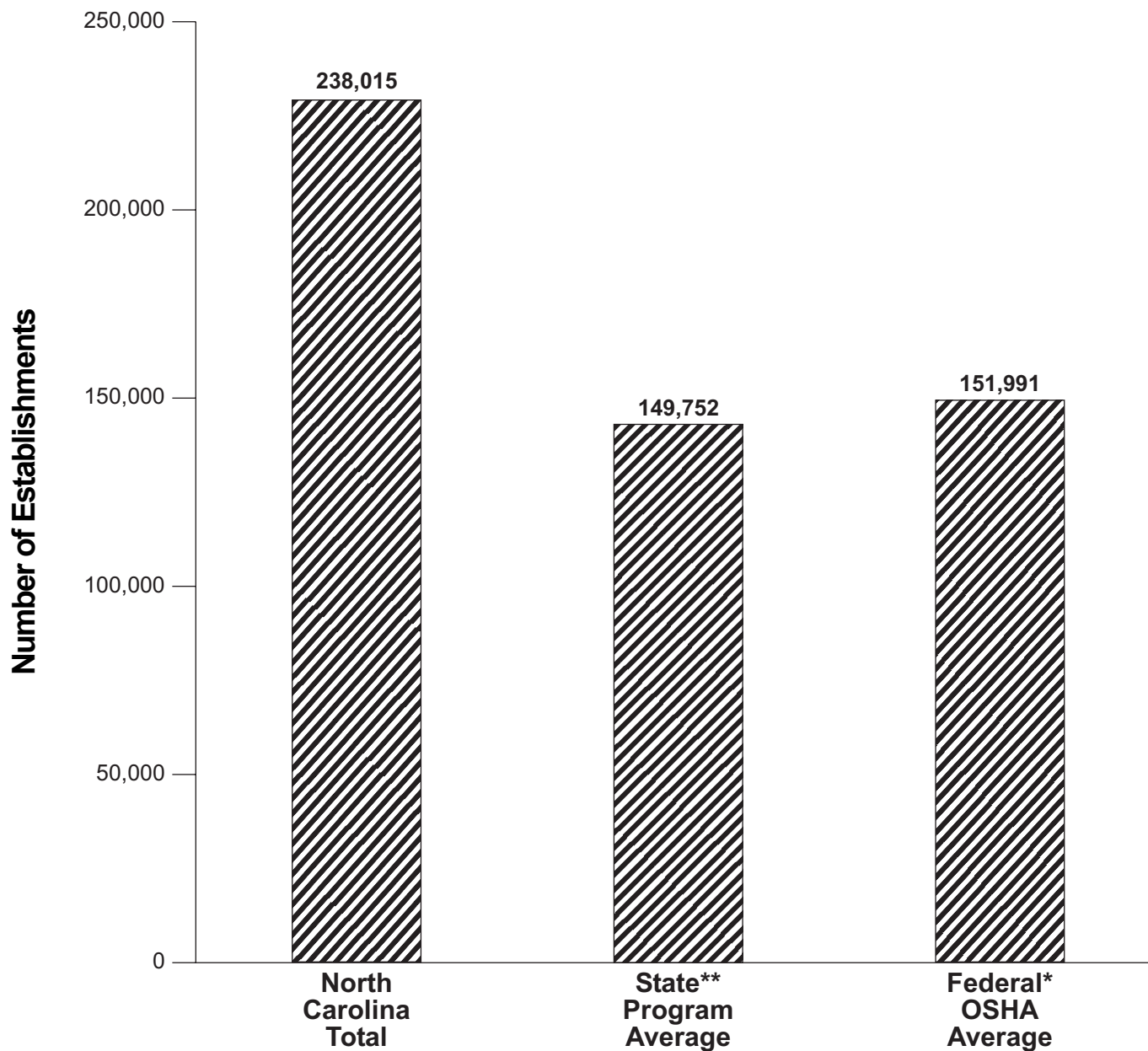
Comparison of Establishments Covered by State and Federally Administered Occupational Safety and Health Programs

State Administered Programs	Number of Establishments ¹	Federally Administered	Number of Establishments ¹
Total 21 states, 1 jurisdiction	3,294,548	Total 29 states, 2 jurisdictions²	4,711,708
Region 1-1 state	20,829	Region 1-5 states	379,115
Vermont	20,829	Connecticut ³	88,916
Region 2-1 jurisdiction	44,748	Maine ³	41,843
Puerto Rico	44,748	Massachusetts	181,061
Region 3-2 states	342,916	New Hampshire	38,494
Maryland	139,449	Rhode Island	28,801
Virginia	203,467	Region 2-2 states, 1 jurisdiction	783,644
Region 4-4 states	580,920	New Jersey ³	233,888
Kentucky	91,219	New York ³	547,351
North Carolina	238,015	Virgin Islands ³	2,405
South Carolina	111,926	Region 3-3 states, 1 jurisdiction	389,154
Tennessee	139,760	Delaware	26,142
Region 5-3 states	522,638	District of Columbia	23,993
Indiana	148,917	Pennsylvania	303,224
Michigan	222,226	West Virginia	35,795
Minnesota	151,495	Region 4-4 states	973,407
Region 6-1 state	43,804	Alabama	100,731
New Mexico	43,804	Florida	574,512
Region 7-1 state	82,770	Georgia	239,034
Iowa	82,770	Mississippi	59,130
Region 8-2 states	105,502	Region 5-3 states	713,033
Utah	83,924	Illinois ³	320,417
Wyoming	21,578	Ohio	250,981
Region 9-4 states	1,214,843	Wisconsin	141,635
Arizona	147,163	Region 6-4 states	876,782
California	966,224	Arkansas	67,243
Hawaii	32,889	Louisiana	106,302
Nevada	68,567	Oklahoma	93,761
Region 10-3 states	335,578	Texas	609,476
Alaska	21,399	Region 7-3 states	281,047
Oregon	119,074	Kansas	74,292
Washington	195,105	Missouri	151,816
		Nebraska	54,939
		Region 8-4 states	264,979
		Colorado	174,258
		Montana	38,959
		North Dakota	24,654
		South Dakota	27,108
		Region 9-2	
		Region 10-1 state	50,547
		Idaho	50,547

1. Source: Number of Establishments: County Business Patterns–United States, 2019 (Private sector only).
2. Excludes American Samoa, Guam, and the Trust Territory of Pacific Islands (Region 9).
3. Connecticut, Maine, Illinois, New Jersey, New York, and the Virgin Islands have state-administered occupational safety and health programs for their public sectors.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

**Text Table 3
Comparison of Number of Establishments**



* Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered private sector occupational safety and health programs.

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Inspection Series

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020-September 2021**

Definitions of Types of Inspections

I. General Schedule Inspections:

- A. Programmed Planned**—An inspection randomly selected and scheduled from a master list of all employers or selected from lists of employers in specific industries as part of a national or local occupational safety and health emphasis program.
- B. Programmed Related**—An inspection of an employer at a multi-employer worksite who was not included in the programmed planned assignment that initiated the worksite visit.

II. Unprogrammed Inspections:

A. Accident:

An accident inspection results from the reporting of the following:

- 1. Fatality**—An employee death resulting from an employment accident or illness caused by or related to a workplace hazard.
- 2. Catastrophe**—The hospitalization of three or more employees resulting from an employment accident or illness; in general, from an accident or illness caused by a workplace hazard. Hospitalization is defined as being admitted as an inpatient to a hospital or equivalent medical facility for examination or treatment.
- 3. Other Significant Incident***—Any other significant incident that actually or potentially resulted in a serious injury or illness.

B. Complaint:

A complaint is a notice given by an employee, a representative of employees, or any other source not identified as a referral source of a hazard or a violation of the act believed to exist in a workplace. A complaint is normally distinguished from a referral by the source providing information on the alleged hazard.

C. Referral:

Notices of hazards or alleged violations originated by the following sources are classified as referrals:

- 1. safety or health compliance officer
- 2. safety and health agency
- 3. other government agency
- 4. media report
- 5. employer report

D. Followup:

A follow up inspection is an inspection conducted to determine whether the employer has abated violations previously cited on an OSH inspection.

E. Unprogrammed Related:

An unprogrammed related inspection is an inspection of an employer of a multi-employer worksite who was not identified as an exposing employer in the original unprogrammed inspection assignment (e.g., complaint, accident, referral) that initiated the visit to the worksite.

* Federal OSHA also classifies fatalities and catastrophes as accidents or events. However, in North Carolina other significant incidents of injuries are classified by source. Information about injuries obtained through the media are referrals; incidents reported by co-workers or relatives are complaints.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020-September 2021**

Inspections Series Highlights

- The number of inspections in North Carolina increased from 2,109 in FY 2020 to 2,218 in FY 2021, an increase of 5 percent.
- The average number of inspections in state programs was 1,416 in FY 2021 less than FY 2020 (1,459).
- The average number of inspections in federal jurisdictions was 786 in FY 2021, more than in FY 2020 (700).
- The number of safety inspections in North Carolina decreased from 1,297 in FY 2020 to 1,257 in FY 2021, a decrease of 3 percent.
- The number of safety inspections in state programs had an 8 percent decrease from 1,088 in FY 2020 to 1,006 in FY 2021.
- The number of safety inspections in federal jurisdictions had a 12 percent increase from 566 in FY 2020 to 644 in FY 2021.
- The number of health inspections in North Carolina increased from 812 in FY 2020 to 961 in FY 2021, an increase of 16 percent.
- The number of health inspections in state programs had a 10 percent increase from 371 in FY 2020 to 410 in FY 2021.
- The number of health inspections in federal jurisdictions had a 6 percent increase from 134 in FY 2020 to 142 in FY 2021.
- The percentage of inspections conducted in FY 2021 for manufacturing was 17 percent of the total inspections for North Carolina, compared to 15 percent of total inspections for the average state program and 19 percent of total inspections for the average federal jurisdiction.
- The percentage of inspections conducted in FY 2021 for construction was 53 percent of total inspections for North Carolina, compared to 38 percent of total inspections for the average state program and 52 percent of total inspections for the average federal jurisdiction.
- North Carolina conducted 6 percent of the total inspections in the public sector in FY 2021, compared to 12 percent of the total inspections in the public sector for the average state program. Federal OSHA does not have jurisdiction over public sector establishments.
- The average number of days from the opening conference until citations were issued for FY 2021 was 41 days for North Carolina, compared to 58 days for the average state program and 59 days for the average federal jurisdiction.

CHART 1

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Inspections, All Types

Comparison	FY 2019		FY 2020		FY 2021	
	Total	Program Average	Total	Program Average	Total	Program Average
North Carolina	2,928	2,928	2,109	2,109	2,218	2,218
State Program**	42,142	1,915	32,099	1,459	31,156	1,416
Federal OSHA*	33,464	1,079	21,691	700	24,350	786

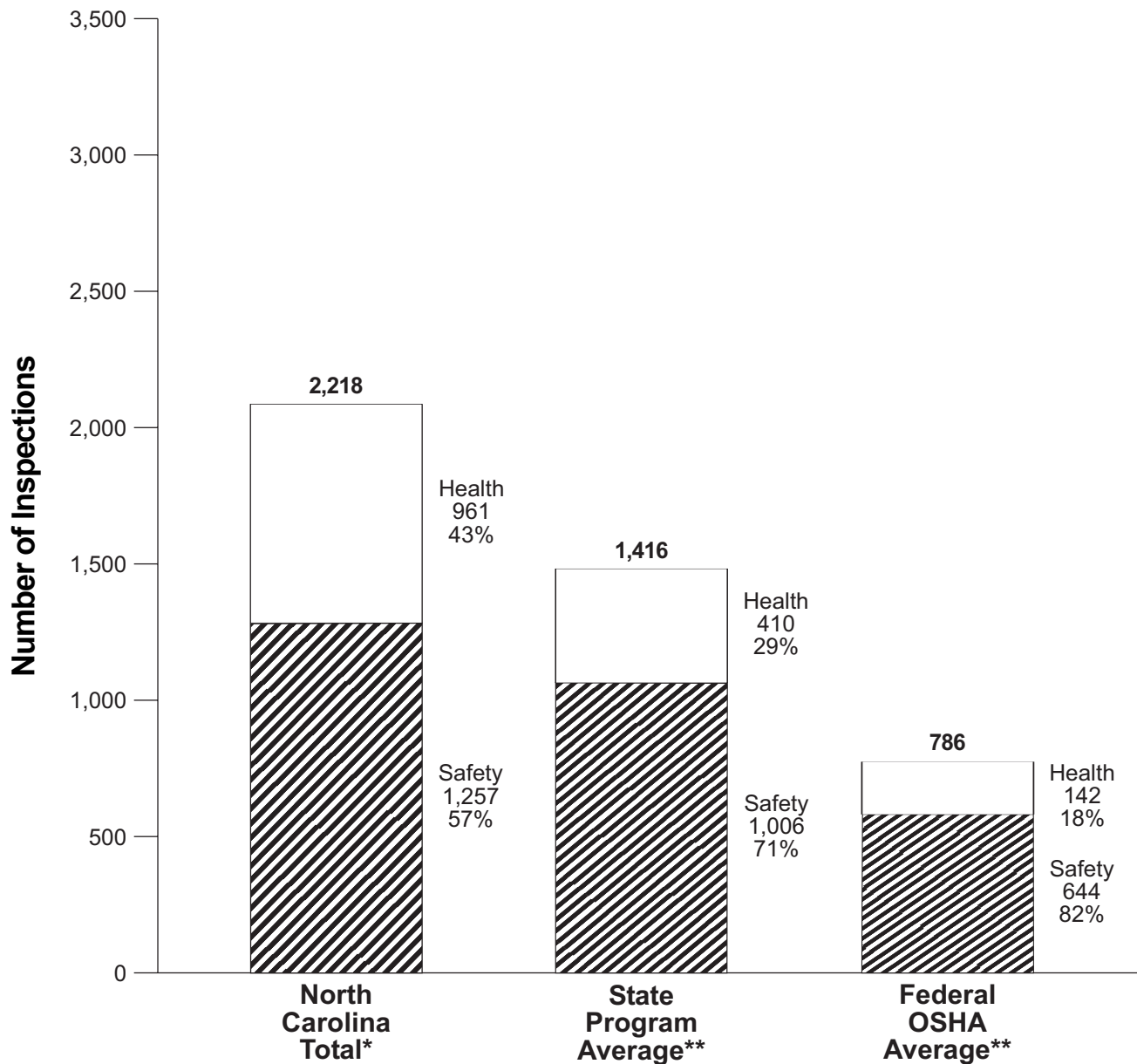
Inspections by Category FY 2021

Comparison	Safety Total	Safety Percent	Health Total	Health Percent
North Carolina	1,257	57	961	43
State Program**	1,006	71	410	29
Federal OSHA*	644	82	142	18

* Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered occupational safety and health programs.

Inspections by Category



* N.C. data from the OSHA Express database, “Inspection Summary by RID,” run 1-12-22.

** Federal OSHA and State Program data from the OSHA Information System (OIS), “Inspection Summary Report,” run 1-12-22.

CHART 3

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Inspections by Type

Comparison	Accident		Complaint		Programmed	
	Total	Percent	Total	Percent	Total	Percent
North Carolina	85	4	427	20	1,252	56
State Program**	189	14	350	25	515	36
Federal OSHA*	46	6	160	20	342	44

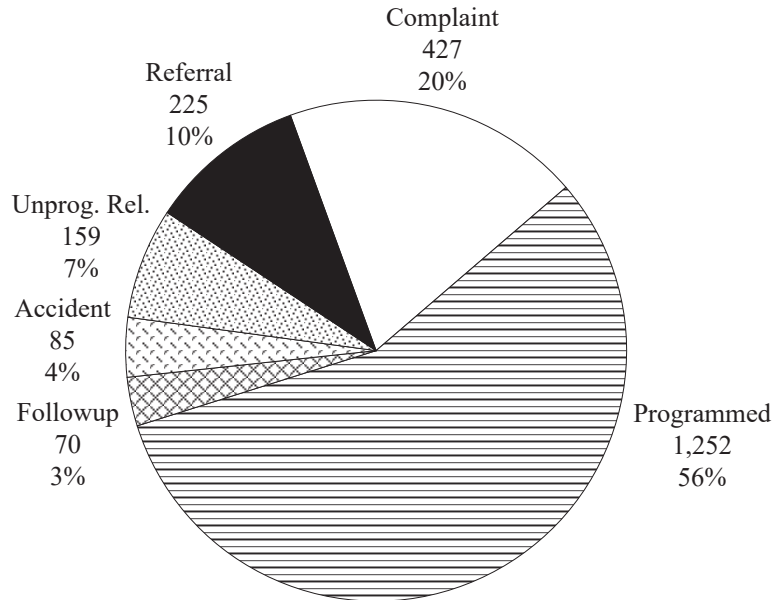
Comparison	Followup		Referral		Unprogrammed Related	
	Total	Percent	Total	Percent	Total	Percent
North Carolina	70	3	225	10	159	7
State Program**	32	2	245	17	85	6
Federal OSHA*	28	3	171	22	39	5

* Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered occupational safety and health programs.

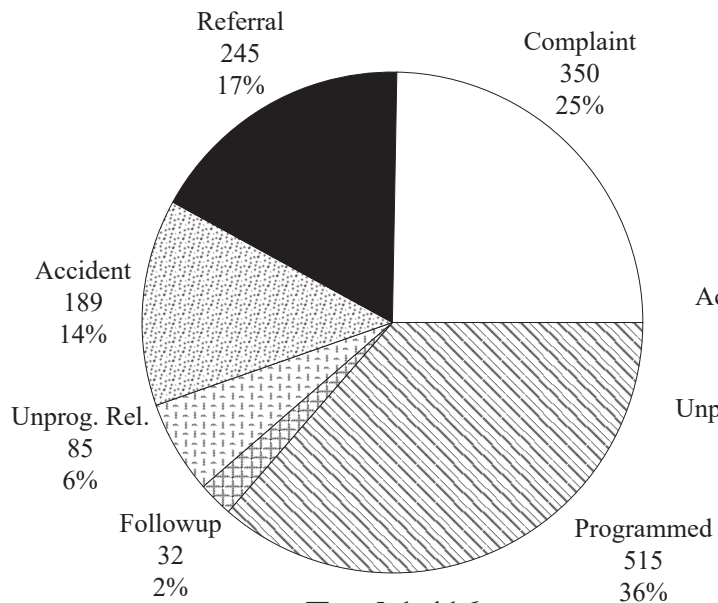
Inspections by Type

North Carolina Total*



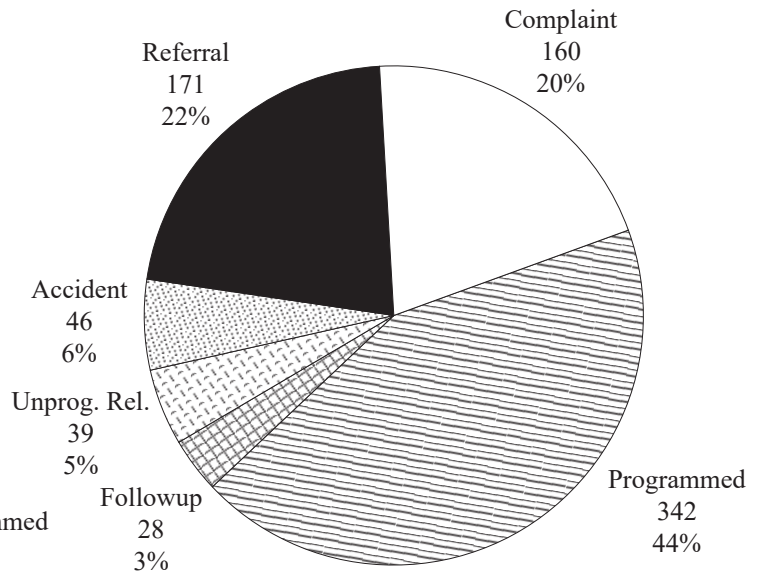
Total 2,218

State Program Average**



Total 1,416

Federal OSHA Average**



Total 786

* N.C. data from the OSHA Express database, “Inspection Summary by RID,” run 1-12-22.

** Federal OSHA and State Program data from the OSHA Information System (OIS), “Inspection Summary Report,” run 1-12-22.

CHART 5

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Inspections by Industry Type

Comparison	Construction		Manufacturing	
	Total	Percent	Total	Percent
North Carolina	1,190	53	374	17
State Program**	534	38	217	15
Federal OSHA*	406	52	149	19

Comparison	Other		Public Sector***	
	Total	Percent	Total	Percent
North Carolina	527	24	127	6
State Program**	489	35	176	12
Federal OSHA*	231	29	N/A	N/A

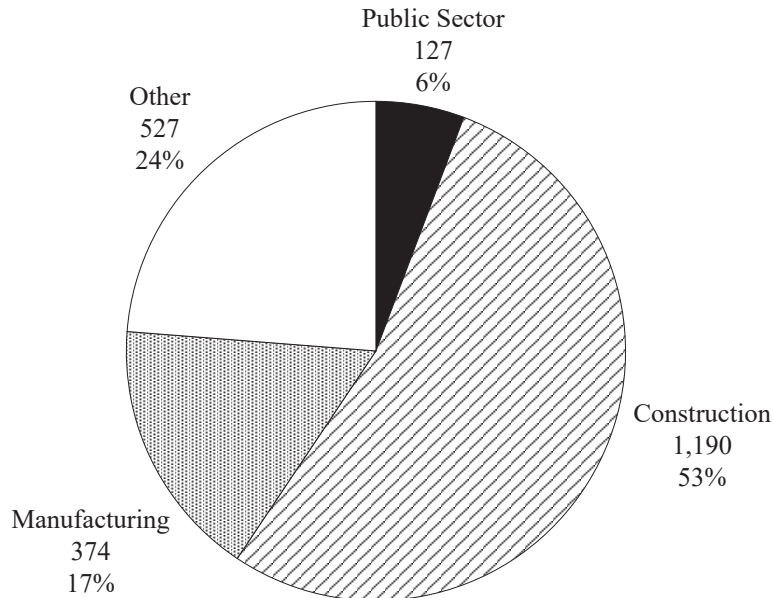
* Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered occupational safety and health programs.

*** Federally administered programs do not cover public sector.

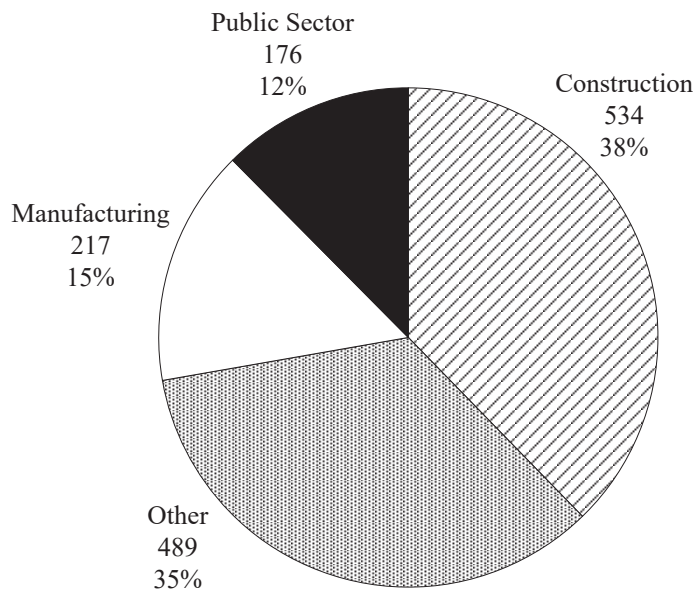
Inspections by Industry Type

North Carolina Total*



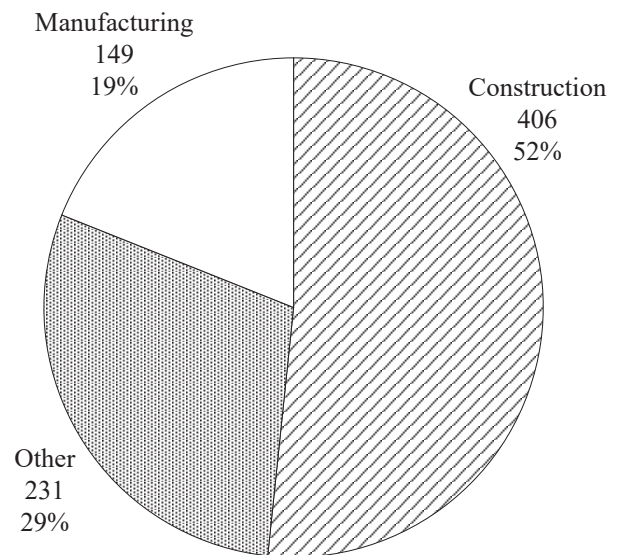
Total 2,218

State Program Average**



Total 1,416

Federal OSHA Average**



Total 786

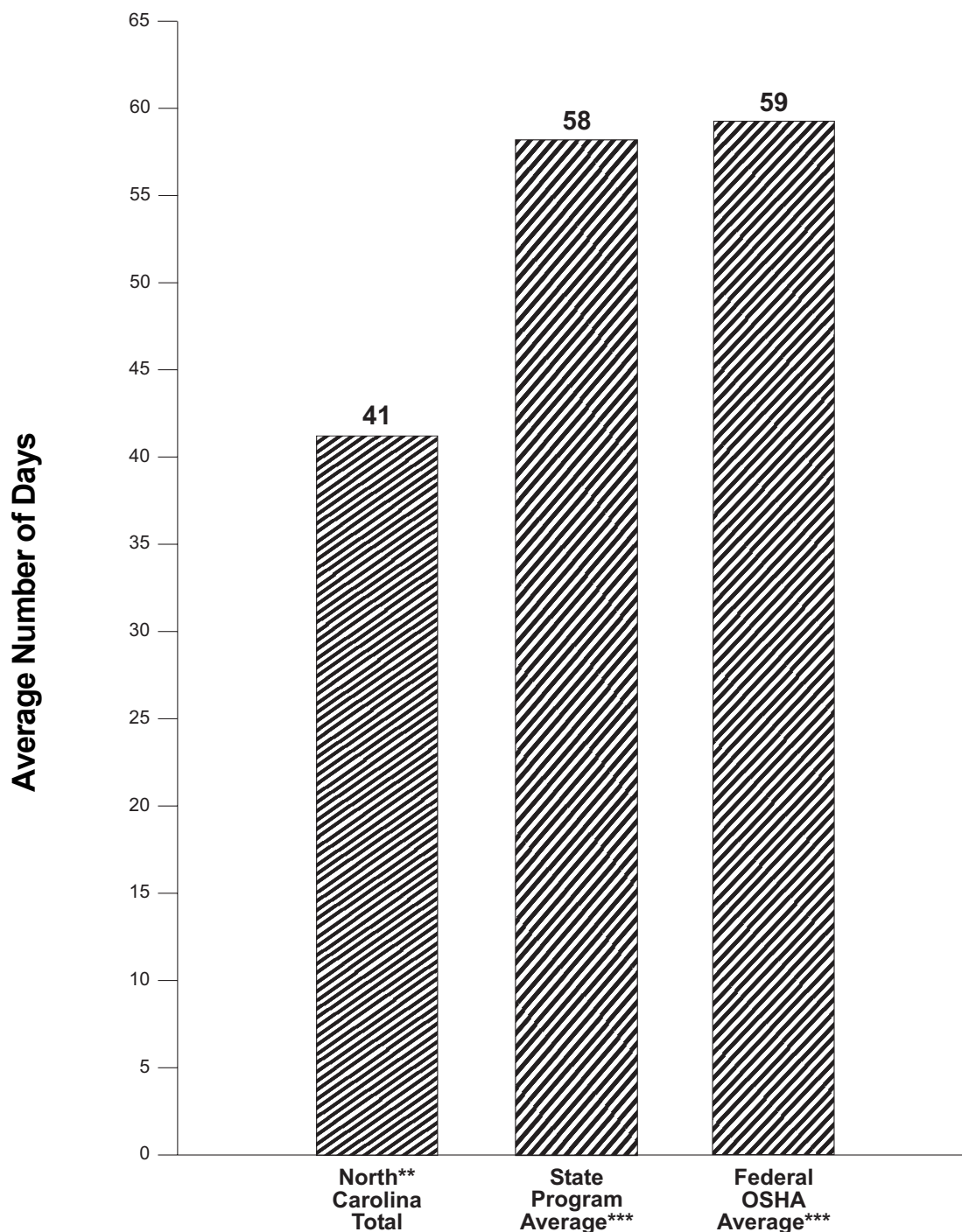
* N.C. data from the OSHA Express database, “Inspection Summary by RID,” run 1-12-22.

** Federal OSHA and State Program data from the OSHA Information System (OIS), “Inspection Summary Report,” run 1-12-22.

CHART 7

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Average Lapse Time* for All Inspections



* Lapse time is the number of days from the opening conference until citations are issued.

** N.C. data from the OSHA Express database, “State Activity Mandated Measures (SAMM) report,” run 1-12-22.

*** Federal OSHA and State Program data from the OSHA Information System (OIS), “Inspection Summary Report,” run 1-12-22.

Violation Series

N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021

Definitions of Types of Violations

1. WILLFUL—A “willful” violation may exist under the North Carolina Occupational Safety and Health Act where the evidence shows that the employer committed an intentional and knowing, as contrasted with inadvertent, violation of the act and the employer is conscious of the fact that what he is doing constitutes a violation of the act; or even though the employer was not consciously violating the act, he was aware that a hazardous condition existed and made no reasonable effort to eliminate the condition. It is not necessary that the violation be committed with malice or an evil intent to be deemed “willful” under the act. It is sufficient that the act was deliberate, voluntary, or intentional as distinguished from those that were inadvertent, accidental or ordinarily negligent.

2. SERIOUS—A serious violation exists in a place of employment if there is a substantial probability that death or serious physical harm could result from a condition that exists, or from one or more practices, means, methods, operations or processes that have been adopted or are in use at such place of employment, unless the employer did not know and could not, with the exercise of reasonable diligence, know of the presence of the violation. A citation for serious violations may be issued for a group of individual violations which, when taken by themselves, would not be serious, but when considered together would be serious in the sense that in combination they present a substantial probability of injury resulting in death or serious physical harm to employees.

3. OTHER-THAN-SERIOUS (NONSERIOUS)—This type of violation is cited where an accident or occupational illness resulting from violation of a standard would probably not cause death or serious physical harm but would have a direct or immediate relationship to the safety or health of employees. An example of an “other” violation is the lack of guardrails at a height from which a fall would more probably result in only a mild sprain or cut and abrasions, i.e., something less than serious physical harm.

4. REPEAT—A citation for a repeat violation may be issued where upon reinspection a second violation of the previous cited section of a standard, regulation, rule, order or condition violating the General Duty Clause is found and:

- (a) The citation is issued within three years of the final order of the previous citation; or
- (b) The citation is issued within three years of the final abatement date of that citation, whichever is later.

Repeat violations differ from willful violations in that they may result from an inadvertent, accidental or ordinarily negligent act. A willful violation need not be one for which the employer has been previously cited. If a repeat violation is also willful, a citation for the latter violation will be issued.

Repeat violations are also to be distinguished from a failure-to-abate violation. If upon reinspection a violation of a previously cited standard is found, if such violation does not involve the same piece of equipment or the same location within an establishment or worksite, the violation may be a repeat. If upon reinspection a violation of a previously cited standard is found on the same piece of equipment or in the same location, and the evidence indicates that the violation has continued uncorrected since the original inspection, then there has been a failure-to-abate. If, however, the violation was not continuous, i.e., if it has been corrected and reoccurred, the subsequent reoccurrence is a repeat violation. The violation can be classified as repeat-serious or repeat other-than-serious using the criteria normally applied for serious and other-than-serious violations.

The violation can be classified as repeat-serious or repeat other-than-serious using the criteria normally applied for serious and other-than-serious violations.

5. FAILURE-TO-ABATE—If an employer has not corrected an alleged violation for which a citation has been issued, the violation can be classified as failure-to-abate serious or other-than-serious using the criteria normally applied for serious and other-than-serious violations.

SOURCE: *North Carolina Field Operations Manual*, Chapter IV, “Violations,” and Chapter VI, “Penalties.”

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Violation Series Highlights

- The total number of violations cited by North Carolina increased 8 percent from 3,982 in FY 2020 to 4,312 in FY 2021.
- The total number of violations cited by the average state program in FY 2021 was 2,569, a 14 percent decrease from FY 2020 (2,995).
- The average federal jurisdiction experienced a 22 percent decrease in the total violations cited, from 1,296 in FY 2020 to 1,012 in FY 2021.
- North Carolina cited 2,569 serious violations in FY 2021, less than 1 percent decrease from 2,575 serious violations in FY 2020.
- The number of serious violations cited by the average state program in FY 2021 was 1,341, a 10 percent decrease from 1,486 in FY 2020.
- The average federal jurisdiction cited 737 serious violations in FY 2021, a 20 percent decrease from 922 serious violations in FY 2020.
- North Carolina cited more nonserious violations (1,519), compared to the average state program with 1,101 nonserious violations and cited more than the average federal jurisdiction with 206 nonserious violations cited in FY 2021.
- Overall, North Carolina cited violations per inspection was equal to the average state program (3.2), however cited more violations per inspection than the average federal jurisdiction (2.3).
- In FY 2021, North Carolina reclassified 1.3 percent of the violations, compared to 1.6 percent of violations reclassified in the average federal jurisdiction and the 5.3 percent for the average state program.

CHART 8

Violations in Fiscal Years 2019–2021

Comparison	FY 2019		FY 2020		FY 2021	
	Total	Program Average	Total	Program Average	Total	Program Average
North Carolina	6,025	6,025	3,982	3,982	4,312	4,312
State Program**	84,212	3,828	65,880	2,995	56,508	2,569
Federal OSHA*	51,795	1,671	40,186	1,296	31,380	1,012

* Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered occupational safety and health programs.

CHART 9

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Violations by Type

Comparison	Serious			Nonserious		
	Total	Average	Percent	Total	Average	Percent
North Carolina	2,569	2,569	60	1,519	1,519	35
State Program**	29,496	1,341	52	24,223	1,101	43
Federal OSHA*	22,838	737	73	6,388	206	20

Comparison	Repeat			Willful		
	Total	Average	Percent	Total	Average	Percent
North Carolina	203	203	5	21	21	0
State Program**	2,135	97	4	517	23	1
Federal OSHA*	1,785	58	6	356	11	1

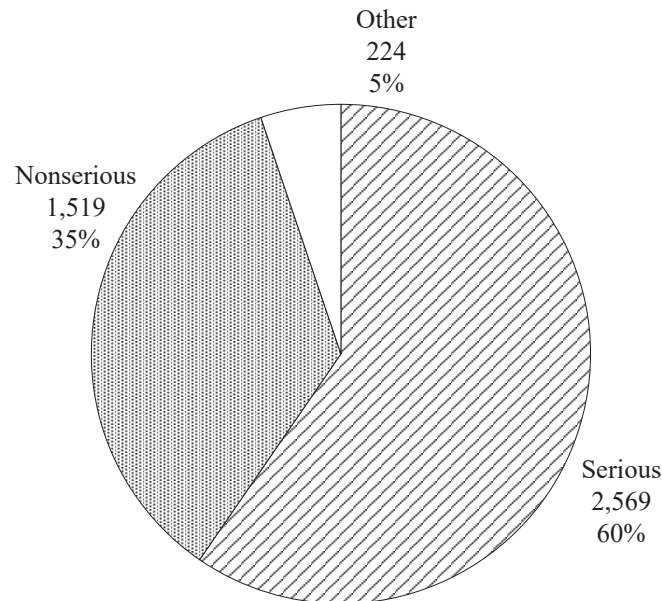
Comparison	Failure-to-Abate			Unclassified		
	Total	Average	Percent	Total	Average	Percent
North Carolina	0	0	0	N/A	N/A	N/A
State Program**	125	6	0	12	1	0
Federal OSHA*	11	0	0	2	0	0

* Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered occupational safety and health programs.

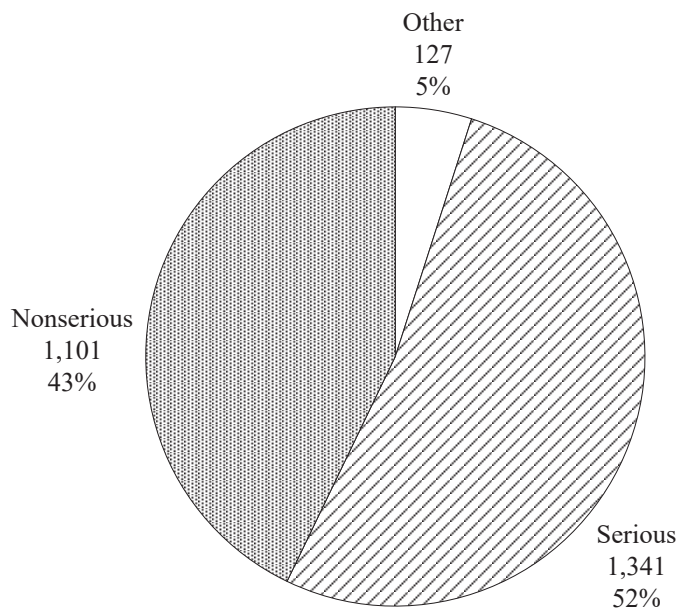
Violations by Type

North Carolina Total*



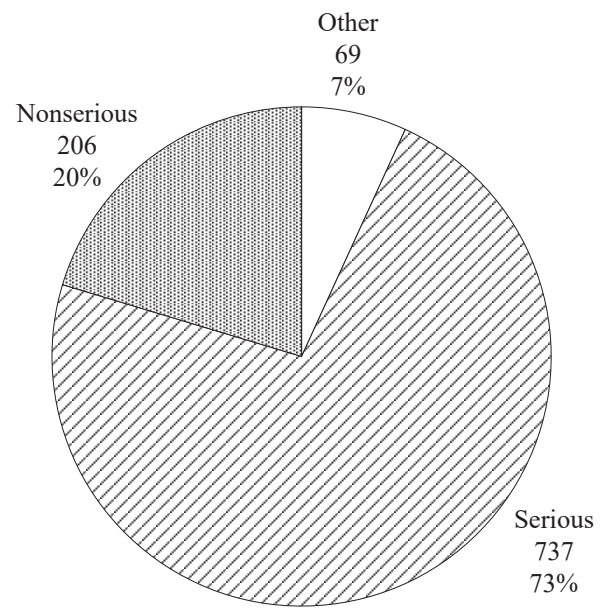
Total 4,312

State Program Average**



Total 2,569

Federal OSHA Average**



Total 1,012

* N.C. data from the OSHA Express database, "Inspection Summary by RID," run 1-12-22.

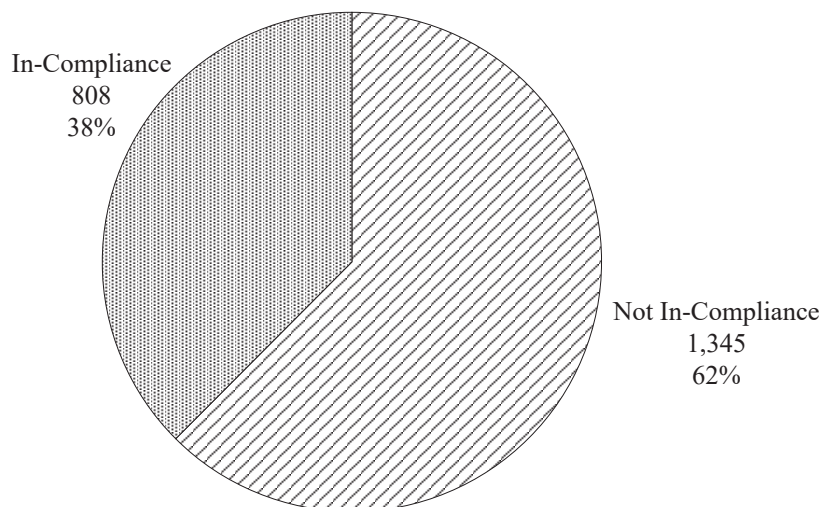
** "Other" violations include repeat, willful, failure-to-abate and unclassified violations.

*** Federal OSHA and State Program data from the OSHA Information System (OIS), "Inspection Summary Report," run 1-12-22.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

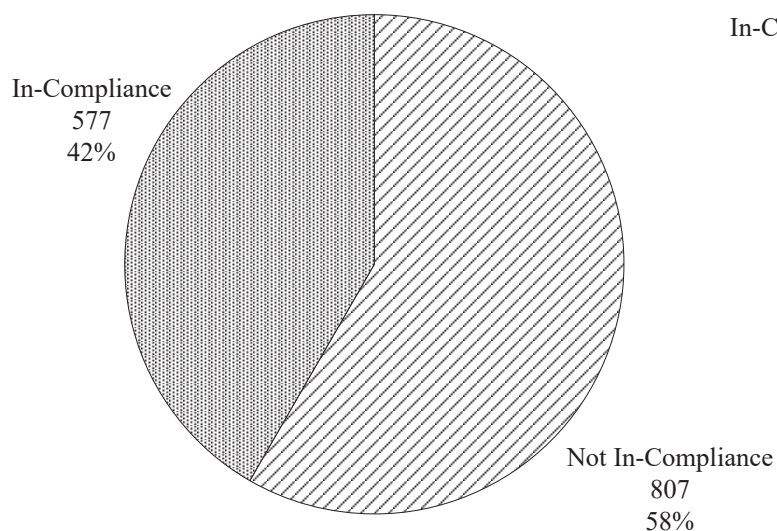
Inspections In-Compliance or With Citations Issued (Excluding Followup Inspections)

North Carolina Total*



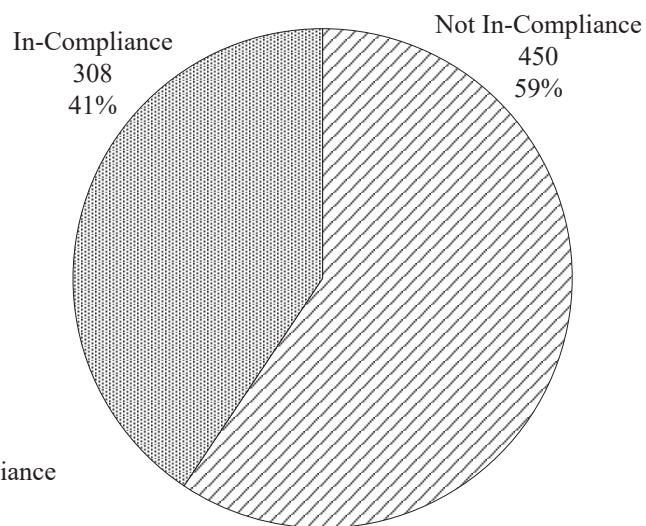
Total 2,153

State Program Average**



Total 1,384

Federal OSHA Average**

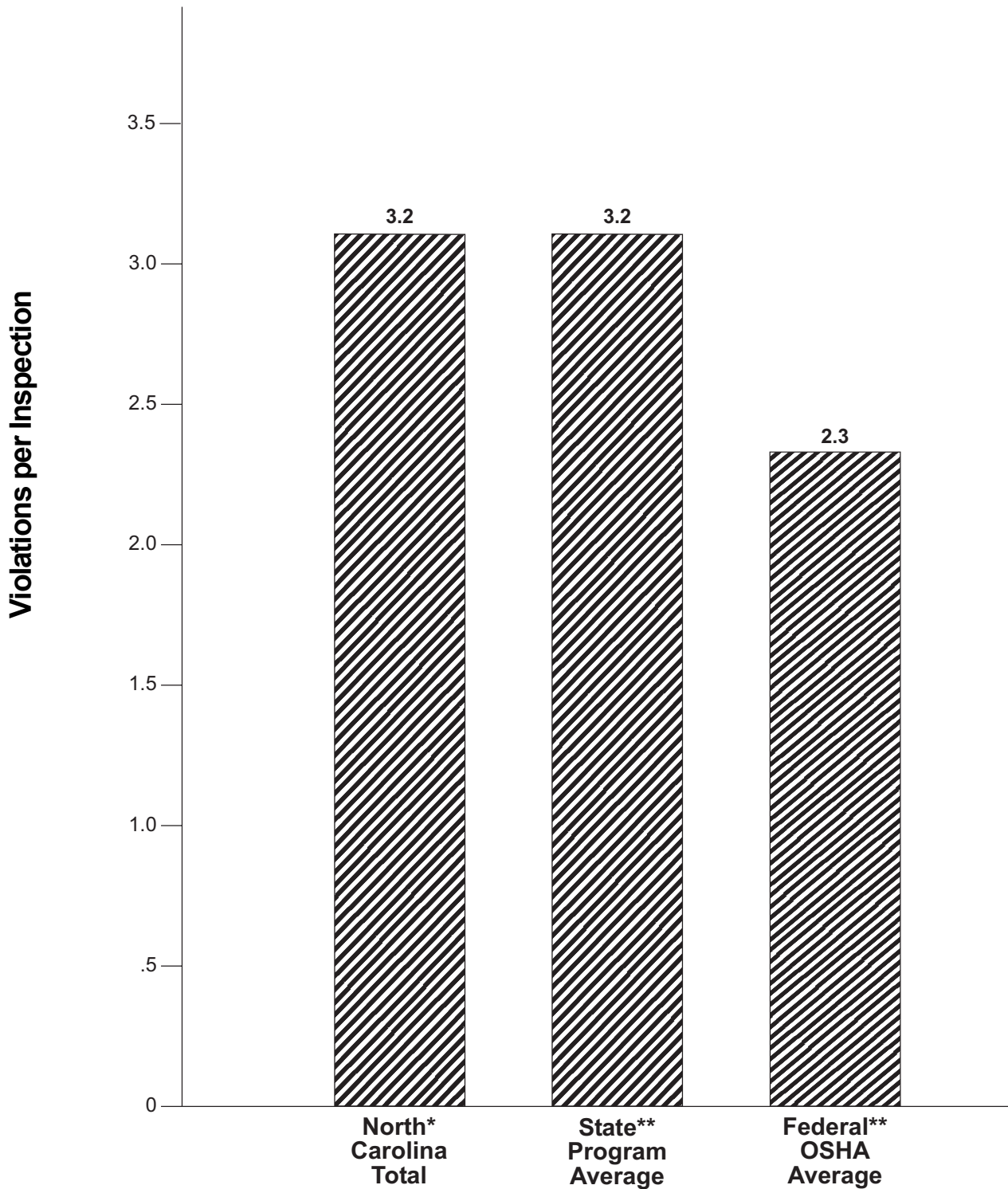


Total 758

* N.C. data from the OSHA Express database, “Inspection Summary by RID,” run 1-12-22.

** Federal OSHA and State Program data from the OSHA Information System (OIS), “Inspection Summary Report,” run 1-12-22.

Violations per Inspection



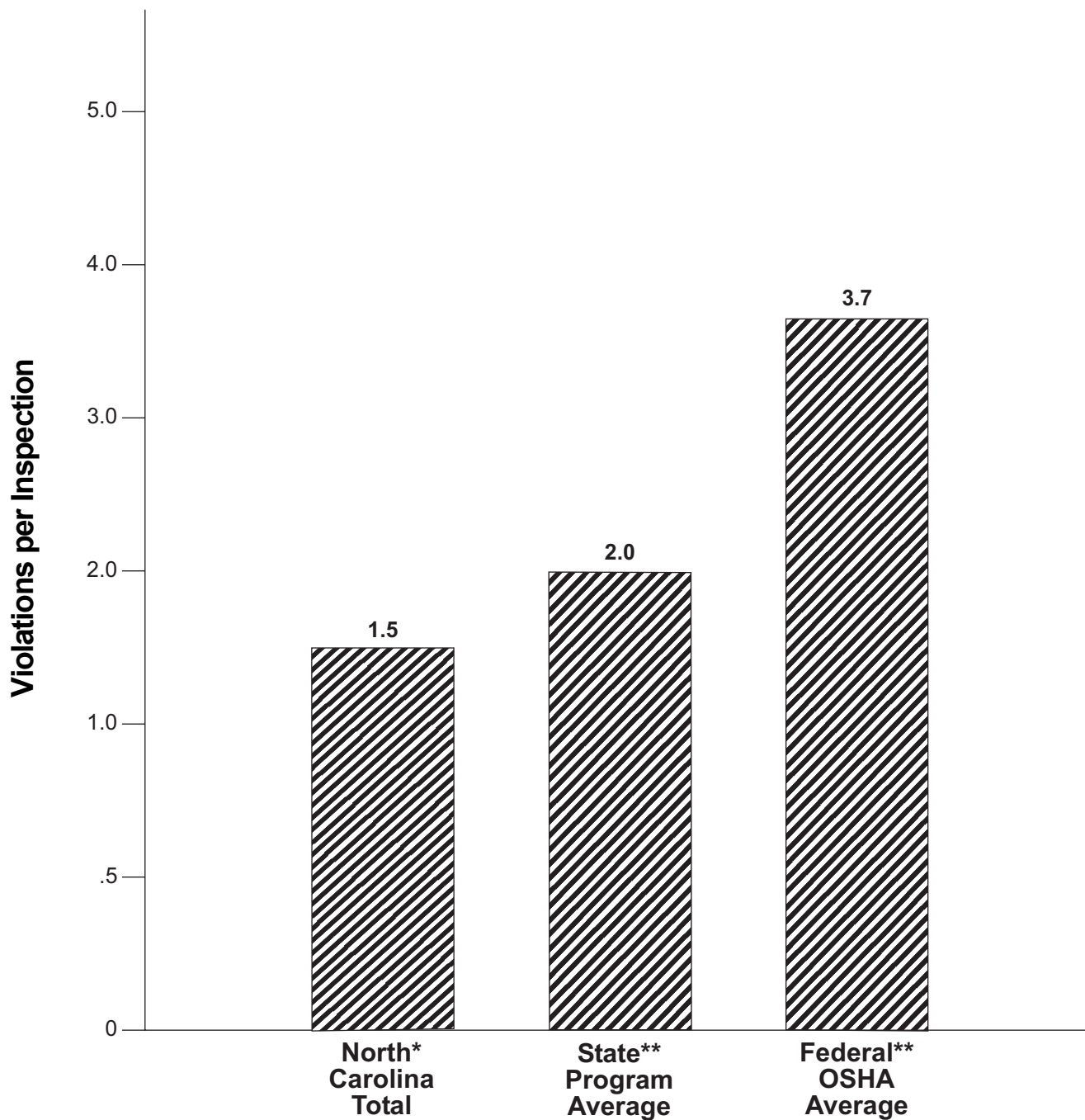
* N.C. data from the OSHA Express database, “Inspection Summary by RID,” run 1-12-22.

** Federal OSHA and State Program data from the OSHA Information System (OIS), “Inspection Summary Report,” run 1-12-22.

CHART 13

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

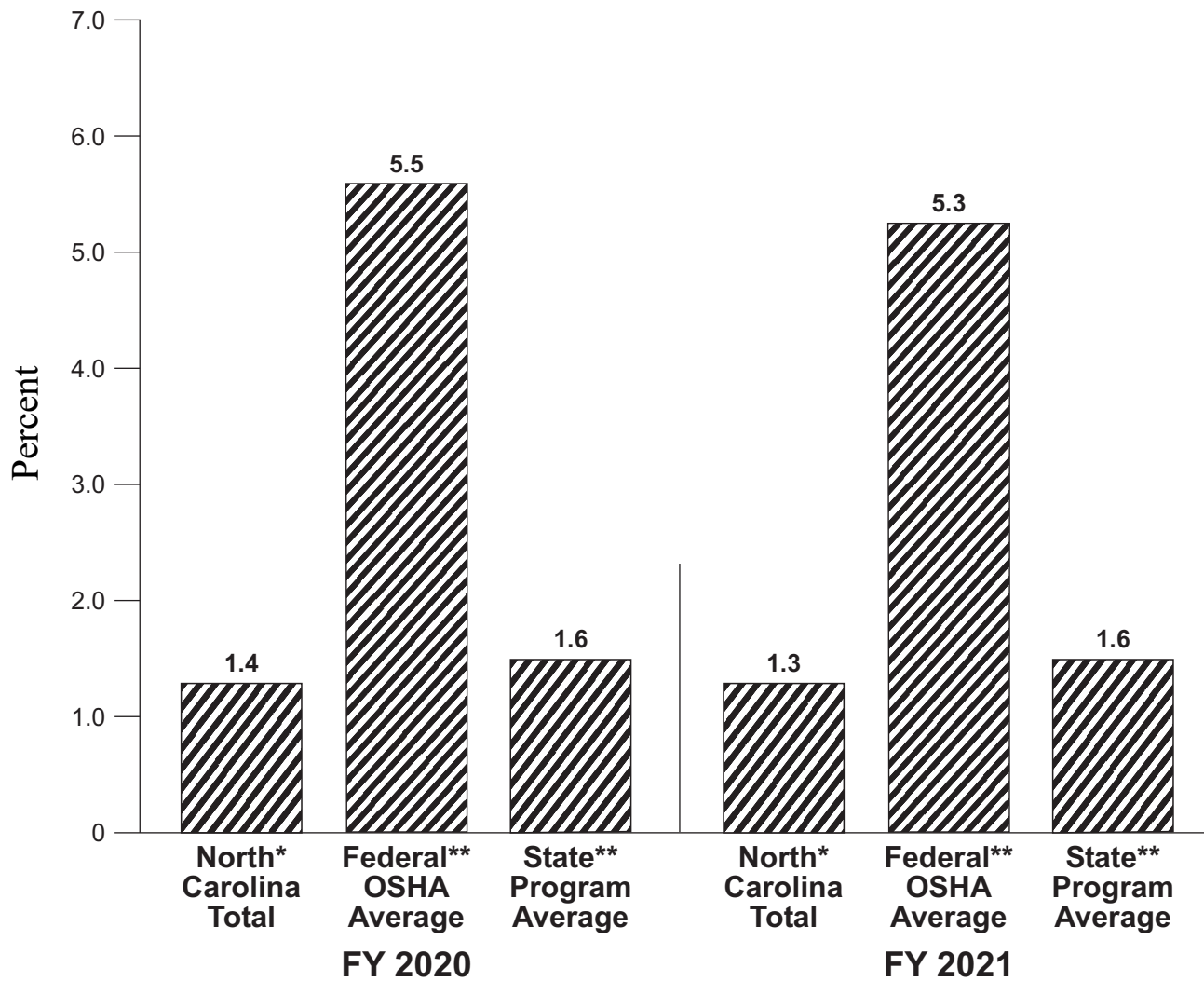
Violations per Followup Inspection*



* N.C. data from the OSHA Express database, “Inspection Summary by RID,” run 1-12-22.

** Federal OSHA and State Program data from the OSHA Information System (OIS), “Inspection Summary Report,” run 1-12-22.

Violations Reclassified



* N.C. data from the OSHA Express database, “State Indicators Report (SIR),” run 1-12-22.

** Federal OSHA and State Program data from the OSHA Information System (OIS), “State Indicators Report (SIR),” run 1-12-22.

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Penalty Series

**N.C. Department of Labor
Occupational Safety and Health Division
October 2018–September 2021**

Penalty Series Highlights

- North Carolina assessed a total of \$7,123,571 in penalties for violations cited in FY 2021, compared to a total of \$4,965,752 assessed by the average state program and \$5,107,476 assessed by the average federal jurisdiction.
- The average penalty per serious violation was \$1,961 in FY 2021, lower than \$2,407 in the average state program and lower than \$4,415 in the average federal jurisdiction.
- North Carolina assessed a total of \$325,778 in penalties for violations cited in the public sector in FY 2021, a 37 percent increase from \$206,825 assessed in FY 2020.
- In FY 2021, North Carolina retained 86.9 percent of penalties assessed compared to 68.3 percent of penalties assessed and retained by the average federal jurisdiction, and 81.7 percent of penalties assessed and retained by the average state program.

CHART 15

Penalty Assessment, All Types

Comparison	FY 2019		FY 2020		FY 2021	
	Total	Program Average	Total	Program Average	Total	Program Average
North Carolina	\$8,425,934	\$8,425,934	\$6,572,032	\$6,572,032	\$7,123,571	\$7,123,571
State Program**	\$121,916,115	\$5,541,642	\$98,644,187	\$4,483,827	\$109,246,547	\$4,965,752
Federal OSHA*	\$204,692,056	\$6,602,970	\$183,183,416	\$5,909,142	\$158,331,761	\$5,107,476

* Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered occupational safety and health programs.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

CHART 16

Penalty Assessment by Violation Type

Comparison	Serious			Nonserious		
	Total	Average	Percent	Total	Average	Percent
North Carolina	\$5,037,769	\$5,037,769	71	\$379,500	\$379,500	5
State Program**	\$70,998,491	\$3,227,204	65	\$10,251,618	\$465,983	9
Federal OSHA*	\$100,867,086	\$3,253,777	64	\$11,616,258	\$374,718	7

Comparison	Repeat			Willful		
	Total	Average	Percent	Total	Average	Percent
North Carolina	\$979,452	\$979,452	14	\$726,850	\$726,850	10
State Program**	\$10,934,594	\$497,027	10	\$14,140,864	\$642,766	13
Federal OSHA*	\$23,589,955	\$760,968	15	\$21,913,302	\$706,881	14

Comparison	Failure-to-Abate			Unclassified***		
	Total	Average	Percent	Total	Average	Percent
North Carolina	\$0	\$0	0	N/A	N/A	N/A
State Program**	\$2,798,003	\$127,182	3	\$122,997	\$5,590	0
Federal OSHA*	\$343,120	\$11,068	0	\$2,000	\$64	0

* Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

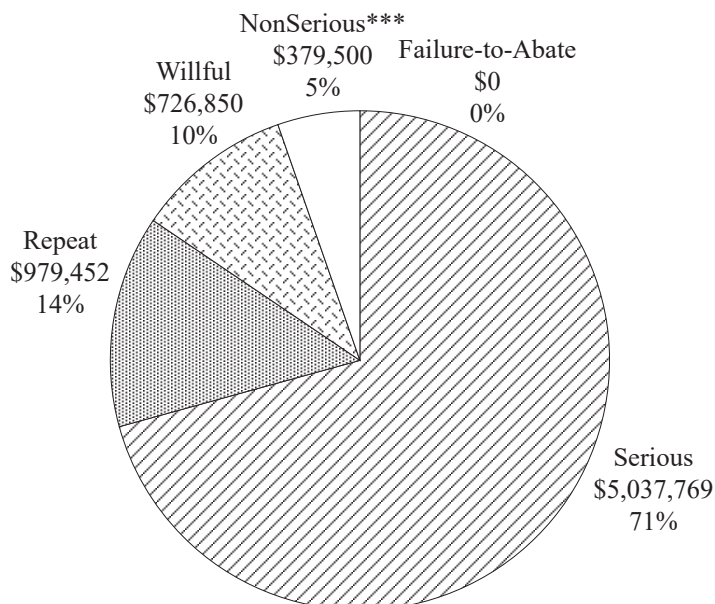
** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered occupational safety and health programs.

*** Unclassified penalties are assessed as part of settlement agreements. North Carolina has not adopted this procedure.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

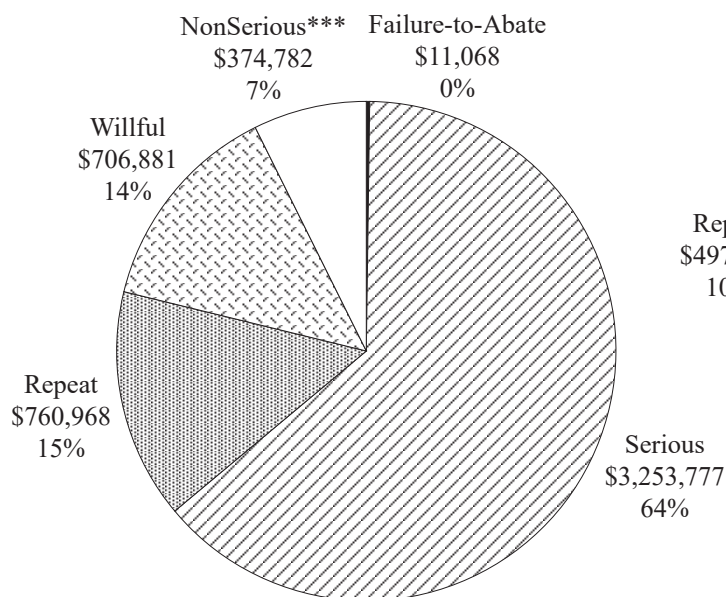
Penalty Assessment by Violation Type

North Carolina Total*



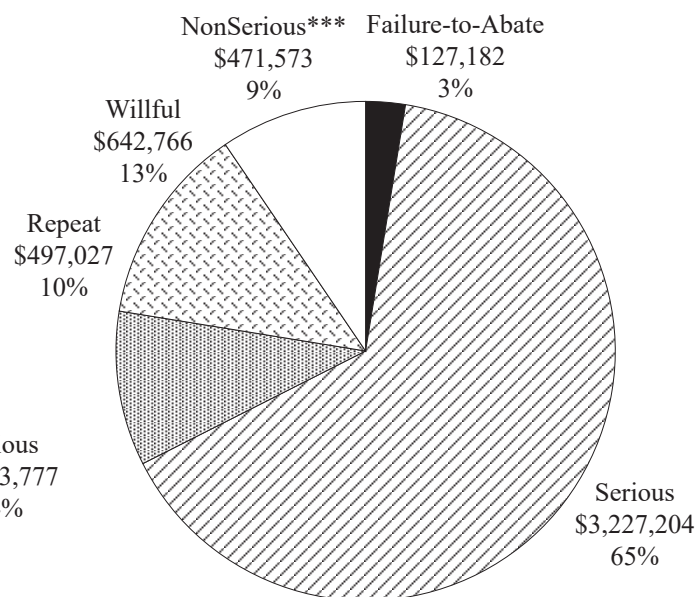
Total \$7,123,571

Federal OSHA Average**



Total \$5,107,476

State Program Average**



Total \$4,965,752

* N.C. data from the OSHA Express database, "Inspection Summary by RID," run 1-12-22.

** Federal OSHA and State Program data from the OSHA Information System (OIS), "Inspection Summary Report," run 1-12-22.

*** Nonserious total also include unclassified penalties.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

CHART 18

Penalty Assessment per Violation

Comparison	Serious	Nonserious	Repeat	Willful	Failure-to- Abate	Unclassified***
North Carolina	\$1,961	\$250	\$4,825	\$34,612	\$0	N/A
State Program**	\$2,407	\$423	\$5,124	\$27,946	\$21,197	\$5,590
Federal OSHA*	\$4,415	\$1,819	\$13,120	\$64,262	****\$31,193	****\$1,000

* Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered occupational safety and health programs.

*** Unclassified penalties are assessed as part of settlement agreements. North Carolina has not adopted this procedure.

**** Total penalty assessment for “Failure-to-Abate” and “Unclassified” violations for the Federal OSHA were based on National data total not by program average.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Penalty Assessment by Violation Type Public Sector*

Comparison	Penalty Assessment (All Types)	
	Total	Average
North Carolina	\$325,778	\$325,778
State Program***	\$8,907,319	\$404,878
Federal OSHA**	N/A	N/A

Comparison	Serious			Nonserious		
	Total	Average	Percent	Total	Average	Percent
North Carolina	\$167,939	\$167,939	52	\$17,839	\$17,839	5
State Program***	\$6,798,294	\$309,013	76	\$925,815	\$42,082	11
Federal OSHA**	N/A	N/A	N/A	N/A	N/A	N/A

Comparison	Repeat			Willful		
	Total	Average	Percent	Total	Average	Percent
North Carolina	\$0	\$0	0	\$140,000	\$140,000	43
State Program***	\$368,610	\$16,755	4	\$522,600	\$23,755	6
Federal OSHA**	N/A	N/A	N/A	N/A	N/A	N/A

Comparison	Failure-to-Abate			Unclassified****		
	Total	Average	Percent	Total	Average	Percent
North Carolina	\$0	\$0	0	N/A	N/A	N/A
State Program***	\$292,000	\$13,273	3	\$0	\$0	0
Federal OSHA**	N/A	N/A	N/A	N/A	N/A	N/A

* Penalties were imposed upon North Carolina state agencies effective July 23, 1992, and local government penalties were imposed effective Jan. 1, 1993.

** Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

*** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered occupational safety and health programs.

**** Unclassified penalties are assessed as part of settlement agreements. North Carolina has not adopted this procedure.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

CHART 20

Penalty Assessment per Violation Public Sector*

Comparison	Serious	Nonserious	Repeat	Willful	Failure-to- Abate	Unclassified****
North Carolina	\$2,099	\$89	\$0	\$70,000	\$0	N/A
State Program***	\$987	\$443	\$5,585	\$23,755	\$4,424	\$0
Federal OSHA**	N/A	N/A	N/A	N/A	N/A	N/A

* Penalties were imposed upon North Carolina state agencies effective July 23, 1992, and local government penalties were imposed effective Jan. 1, 1993.

** Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

*** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered occupational safety and health programs.

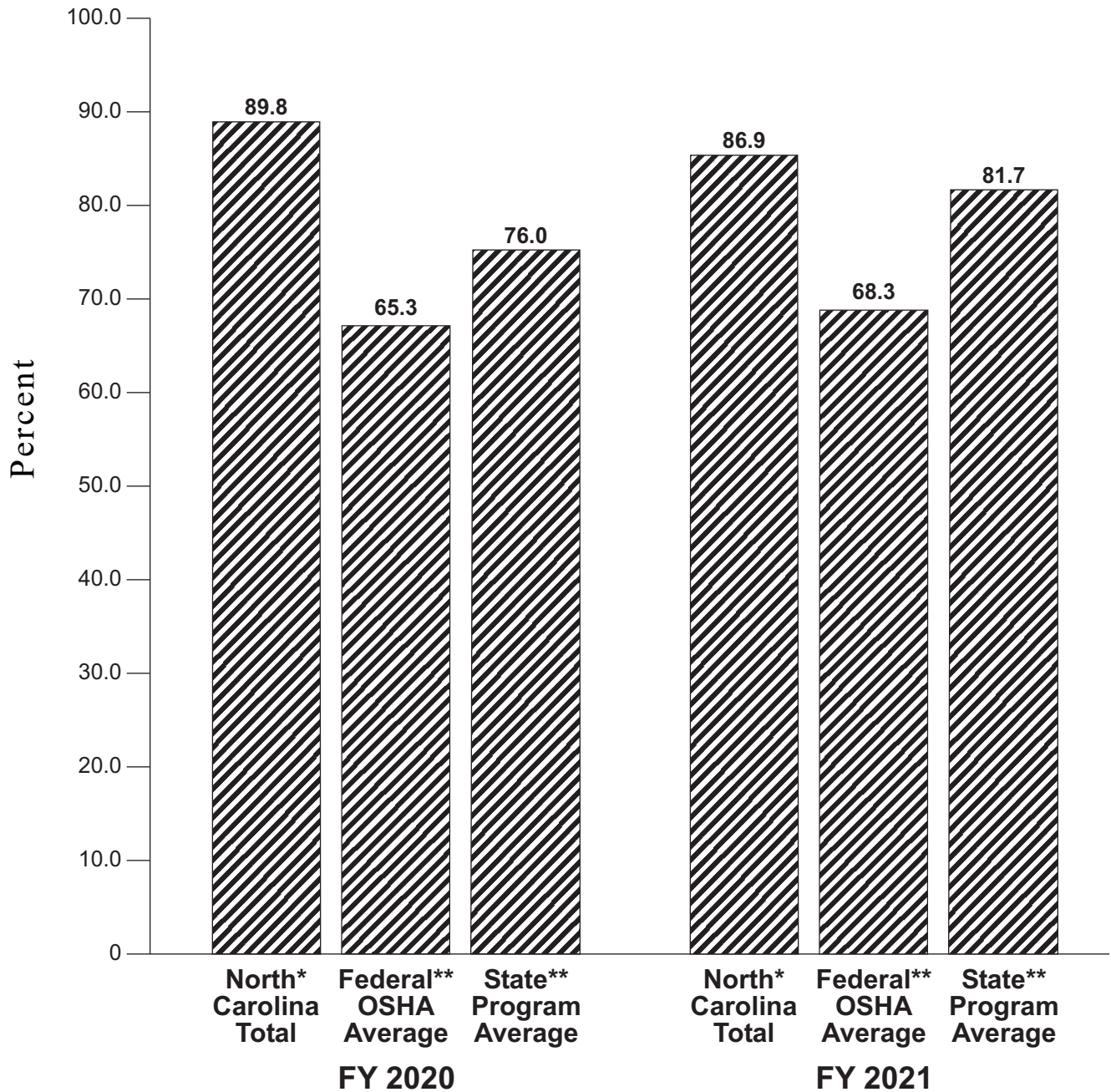
**** Unclassified penalties are assessed as part of settlement agreements. North Carolina has not adopted this procedure.

***** Total penalty assessment for “Willful” violations for the State Program were based on national data total not by program average.

CHART 21

**N.C. Department of Labor
Occupational Safety and Health Division
October 2019–September 2021**

Penalty Retention



* N.C. data from the OSHA Express database, “State Indicators Report (SIR),” run 1-12-22.

** Federal OSHA and State Program data from the OSHA Information System (OIS), “State Activity Mandated Measures (SAMM) Report”, run 1-12-22.

Litigation Series

**N.C. Department of Labor
Occupational Safety and Health Division
October 2018–September 2021**

Litigation Series Highlights

- The number of inspections with citations contested in North Carolina was lower (67) in FY 2021 than in FY 2020 (97). The number of contested cases in FY 2021 for the average state program was 161, and the number of contested cases in the average federal jurisdiction was 41.
- The percentage of inspections with citations that were contested in North Carolina was lower in FY 2021 (4.8) than in FY 2020 (7.1).
- The percentage of inspections with citations that were contested in the average state program was higher in FY 2020 at 19.0 than in FY 2021 at 18.2.
- The percentage of inspections with citations that were contested in the average federal jurisdiction was lower in FY 2021 at 8.7 than in FY 2020 at 9.6.

CHART 22

Contested Cases October 2018–September 2021

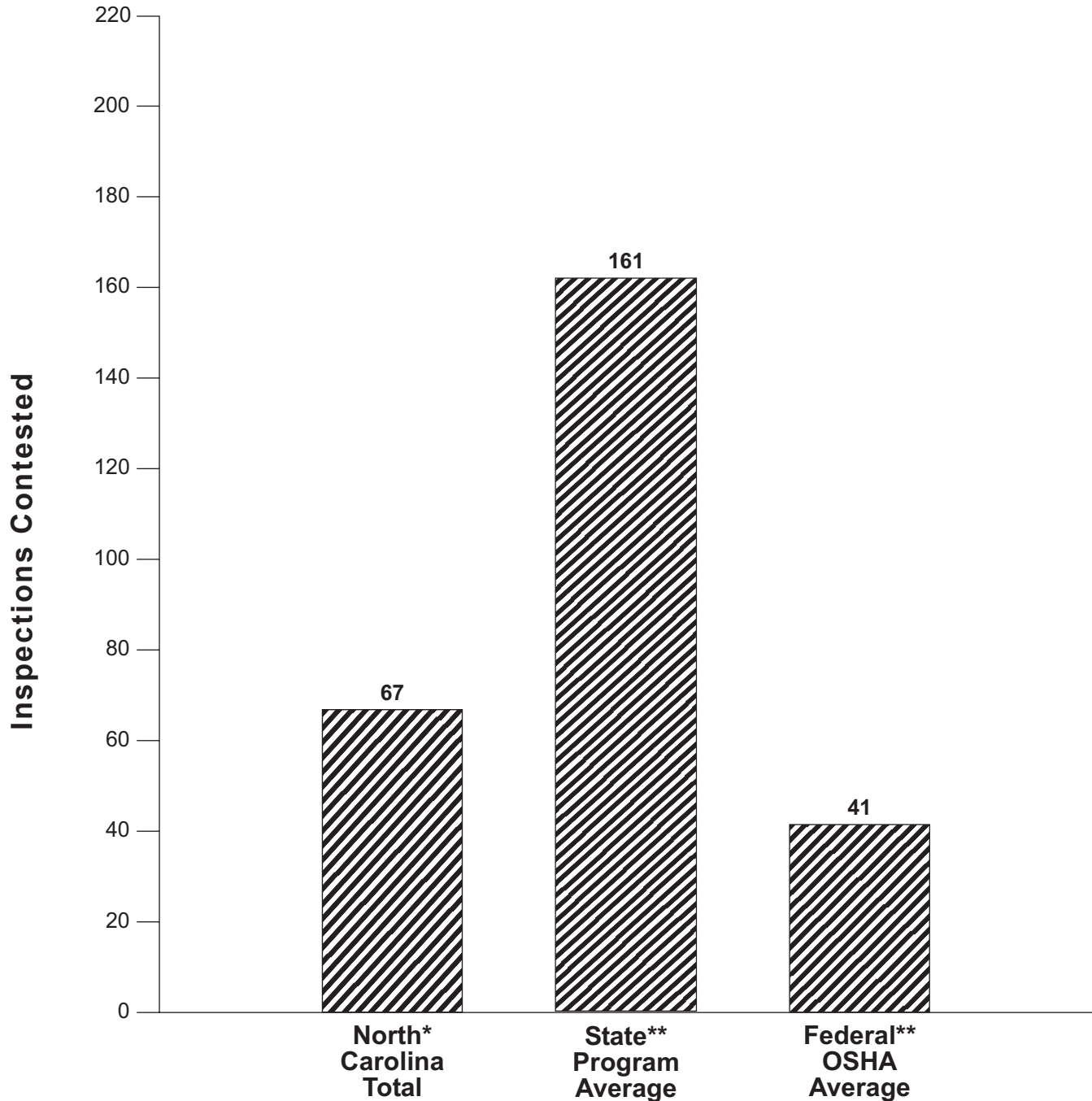
Comparison	FY 2019			FY 2020		
	Inspections Contested Total	Program Average	Percent Inspections With Citations Contested	Inspections Contested Total	Program Average	Percent Inspections With Citations Contested
North Carolina	115	115	5.8	97	97	7.1
State Program**	4,869	221	17.7	4,252	193	19.0
Federal OSHA*	1,793	58	7.8	1,716	55	9.6

Comparison	FY 2021		
	Inspections Contested Total	Program Average	Percent Inspections With Citations Contested
North Carolina	67	67	4.8
State Program**	3,547	161	18.2
Federal OSHA*	1,268	41	8.7

* Federal OSHA represents the 31 jurisdictions (29 states plus the District of Columbia and the Virgin Islands) that have federally administered occupational safety and health programs.

** State program represents the 22 jurisdictions (21 states and Puerto Rico) that have state-administered occupational safety and health programs.

Number of Inspections Contested

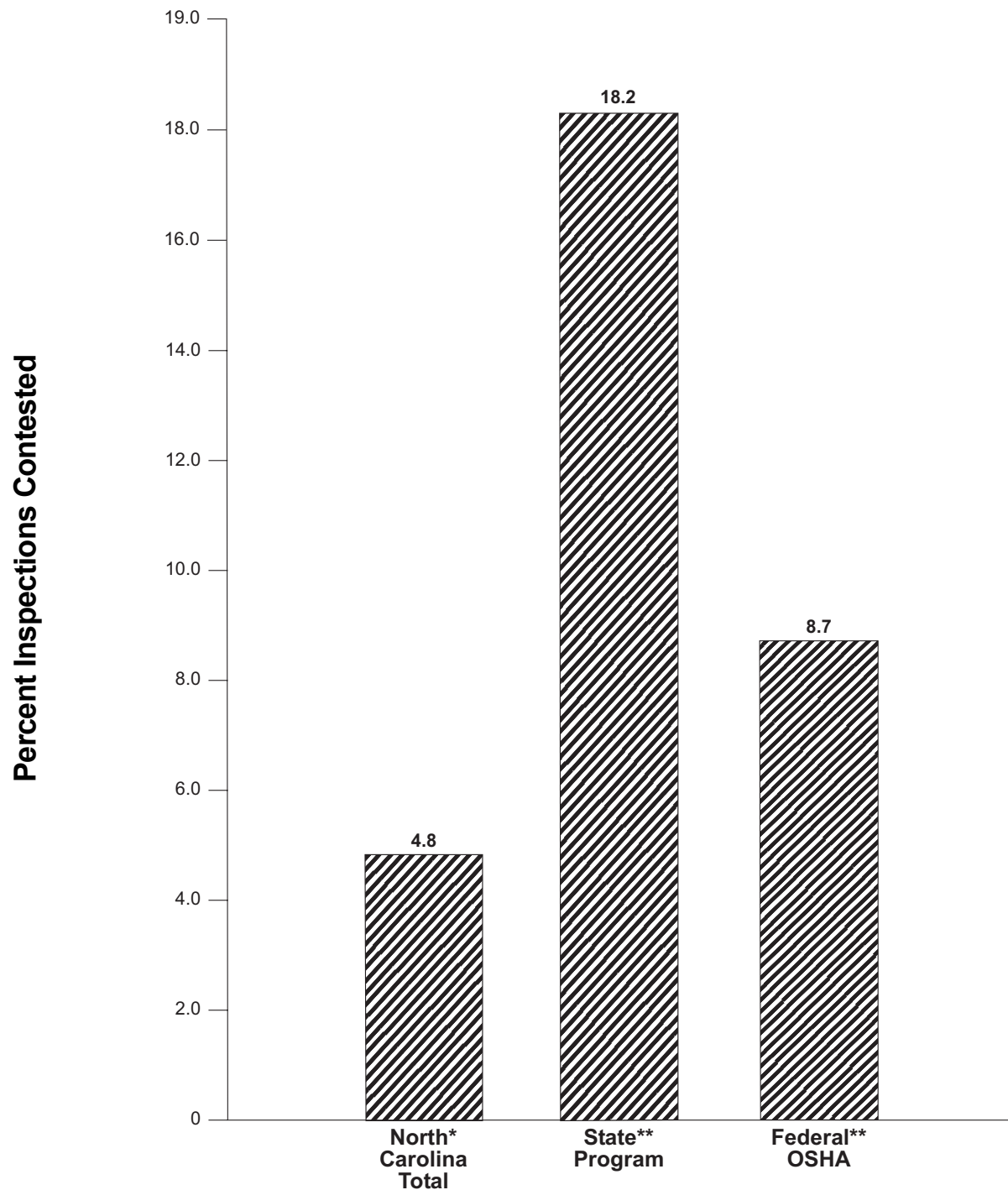


* N.C. data from the OSHA Express database, “Inspection Summary by RID,” run 1-12-22.

** Federal OSHA and State Program data from the OSHA Information System (OIS), “Inspection Summary Report,” run 1-12-22.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Percent of Inspections With Citations Contested



* N.C. data from the OSHA Express database, “Inspection Summary by RID,” run 1-12-22.

** Federal OSHA and State Program data from the OSHA Information System (OIS), “Inspection Summary Report,” run 1-12-22.

Occupational Injury and Illness Incident Rates

CHART 25

**N.C. Department of Labor
Occupational Safety and Health Division
Calendar Years 2013–2020**

Total Case Rates*
Occupational Injuries and Illnesses by Industry
A Comparison Between North Carolina and the United States**

Industry	2013		2014		2015		2016	
	U.S.	N.C.	U.S.	N.C.	U.S.	N.C.	U.S.	N.C.
Private	3.3	2.7	3.2	2.7	3.0	2.6	2.9	2.5
Agriculture, Forestry and Fishing	5.7	2.6	5.5	2.6	5.7	2.8	6.1	2.7
Mining	2.0	1.2	2.0	1.6	1.4	2.0	1.5	1.5
Construction	3.8	2.6	3.6	3.3	3.5	2.7	3.2	2.2
Manufacturing	4.0	3.3	4.0	3.3	3.8	3.3	3.6	2.9
Transportation	3.8	3.1	3.6	3.1	3.6	3.1	3.4	3.1
Wholesale Trade	3.1	2.6	2.9	2.3	3.1	2.8	2.8	2.6
Retail Trade	3.8	3.0	3.6	3.0	3.5	3.0	3.3	2.8
Finance, Insurance and Real Estate	1.3	1.1	1.2	0.7	1.1	0.9	1.1	0.5
Services	3.1	2.6	3.0	2.5	2.9	2.5	2.8	2.5
State and Local Government (Public Sector)	5.2	4.0	5.0	4.0	5.1	3.9	4.7	3.6

Industry	2017		2018		2019		2020	
	U.S.	N.C.	U.S.	N.C.	U.S.	N.C.	U.S.	N.C.
Private Sector	2.8	2.3	2.8	2.4	2.8	2.3	2.7	2.1
Agriculture, Forestry and Fishing	5.0	3.7	5.3	4.1	5.2	3.9	4.6	2.7
Natural Resources and Mining	***3.6	***3.4	***3.7	***3.7	***3.4	***3.6	***3.3	***2.5
Construction	3.1	1.8	3.0	2.5	2.8	1.6	2.5	2.0
Manufacturing	3.5	2.9	3.4	2.8	3.3	2.7	3.1	2.5
Transportation	3.4	3.1	3.5	3.1	3.4	3.0	3.1	2.7
Wholesale Trade	2.8	2.2	2.9	3.3	2.7	2.2	2.4	2.0
Retail Trade	3.3	3.0	3.5	2.6	3.4	2.9	3.1	2.7
Finance, Insurance and Real Estate	1.0	0.7	1.0	1.0	0.9	0.7	0.8	0.5
Services	2.7	2.2	2.7	2.3	2.6	2.2	2.7	2.1
State and Local Government (Public Sector)	4.6	3.8	4.8	3.9	4.6	3.8	3.9	3.0

* Total Case Rates represent the number of recordable injuries and illnesses per 100 full-time employees.

** U.S. data are from the USDOL Bureau of Labor Statistics' *Survey of Occupational Injuries and Illnesses*, 2013, 2014, 2015, 2016, 2017, 2018, 2019 and 2020. N.C. data are from the NCDOL Research and Information Technology Division, Safety and Health Survey Section's *Injuries and Illnesses in North Carolina*, conducted as part of the Bureau of Labor Statistics' survey, 2013, 2014, 2015, 2016, 2017, 2018, 2019 and 2020.

*** As of 2017, the data for the "Mining" industry also include "Oil and Gas extraction and related support activities."

**N.C. Department of Labor
Occupational Safety and Health Division
Calendar Years 2013–2020**

CHART 26

**Days Away, Restricted, Job Transfer (DART) Case Rates* by Industry
A Comparison Between North Carolina and the United States****

Industry	2013		2014		2015		2016	
	U.S.	N.C.	U.S.	N.C.	U.S.	N.C.	U.S.	N.C.
Private Sector	1.7	1.4	1.7	1.4	1.6	1.4	1.6	1.3
Agriculture, Forestry and Fishing	3.4	1.9	3.3	1.7	3.5	2.2	3.6	1.7
Mining	1.3	0.8	1.3	1.1	0.9	0.9	0.9	0.8
Construction	2.2	1.5	2.0	1.8	2.0	1.5	1.9	1.5
Manufacturing	2.2	1.8	2.2	1.9	2.2	1.9	2.1	1.7
Transportation	2.2	2.0	2.2	1.9	2.2	2.0	2.2	2.1
Wholesale Trade	1.9	1.9	1.9	1.5	2.0	1.6	1.8	1.6
Retail Trade	2.1	1.7	2.0	1.7	2.0	1.8	2.0	1.8
Finance, Insurance and Real Estate	0.6	0.5	0.5	0.2	0.6	0.3	0.5	0.2
Services	1.6	1.3	1.6	1.3	1.5	1.2	1.5	1.2
State and Local Government (Public Sector)	2.3	1.8	2.3	1.8	2.4	1.9	2.2	1.7

Industry	2017		2018		2019		2020	
	U.S.	N.C.	U.S.	N.C.	U.S.	N.C.	U.S.	N.C.
Private Sector	1.5	1.3	1.6	1.6	1.5	1.2	1.2	1.3
Agriculture, Forestry and Fishing	3.0	2.5	3.3	3.3	3.2	2.6	1.9	1.8
Natural Resources and Mining	***2.2	***2.3	***2.3	***3.0	***2.1	***2.4	***1.4	***1.7
Construction	1.8	1.1	1.8	1.6	1.7	0.8	1.1	1.0
Manufacturing	2.0	1.8	2.0	1.6	2.0	1.5	1.1	1.6
Transportation	2.2	2.1	2.3	2.0	2.2	1.9	1.3	1.8
Wholesale Trade	1.8	1.5	1.9	2.0	1.8	1.4	1.0	1.3
Retail Trade	1.9	1.8	2.1	1.6	2.0	1.6	1.1	1.7
Finance, Insurance and Real Estate	0.5	0.2	0.5	0.7	0.4	0.3	0.3	0.3
Services	1.4	1.2	1.5	1.2	1.4	1.1	1.2	1.2
State and Local Government (Public Sector)	2.2	1.8	2.3	1.8	2.2	2.0	1.7	1.7

* DART Case Rates represent those cases that involved one or more days an employee is away from work or limited to restricted work activity due to an occupational injury or illness. The rate is calculated per 100 full-time employees.

** U.S. data are from the USDOL Bureau of Labor Statistics' *Survey of Occupational Injuries and Illnesses*, 2013, 2014, 2015, 2016, 2017, 2018, 2019 and 2020. N.C. data are from the NCDOL Research and Information Technology Division, Safety and Health Survey Section's *Injuries and Illnesses in North Carolina*, conducted as part of the Bureau of Labor Statistics' survey, 2013, 2014, 2015, 2016, 2017, 2018, 2019 and 2020.

*** As of 2017, the data for the "Mining" industry also include "Oil and Gas extraction and related support activities."

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State Demographic Profile

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Introduction

The purpose of the Occupational Safety and Health Act of North Carolina is “to assure so far as possible every working man and woman in the State of North Carolina safe and healthful working conditions and to preserve our human resources.” The state’s Five Year Strategic Plan is designated to promote the achievement of this purpose through the specific goals and objectives established by the NCDOL Occupational Safety and Health Division and its employees.

The division has established two primary strategic goals as part of the Five Year Strategic Plan. Goal One is to reduce the rate of workplace fatalities by 2 percent by the end of FY 2023. Goal Two is to reduce the rate of workplace injuries and illnesses by 5 percent by the end of FY 2023.

From these two broad strategic goals, specific areas of emphasis and outcome goals are included in the Strategic Plan. These areas of emphasis include comparisons of the number of employees and establishments covered by the North Carolina occupational safety and health program as presented in Text Tables 4, 5 and 6, respectively.

N.C. Department of Labor
Occupational Safety and Health Division
October 2020-September 2021

Text Table 4
State Demographic Profile
Private Sector

Private Sector	NAIC	SIC	Establishments*	Employees*
Construction	23	15-17	30,749	239,851
Manufacturing	31-33	20-39	10,380	464,582
Transportation	48-49	40-59	9,563	195,049
Wholesale and Retail Trade	42-45	50-59	57,504	704,227
Finance, Insurance and Real Estate	51-53	60-67	39,543	353,505
Services	54-81	70-89	163,984	2,266,141
All Other			4,055	44,208
Total Private Sector			315,778	4,267,563

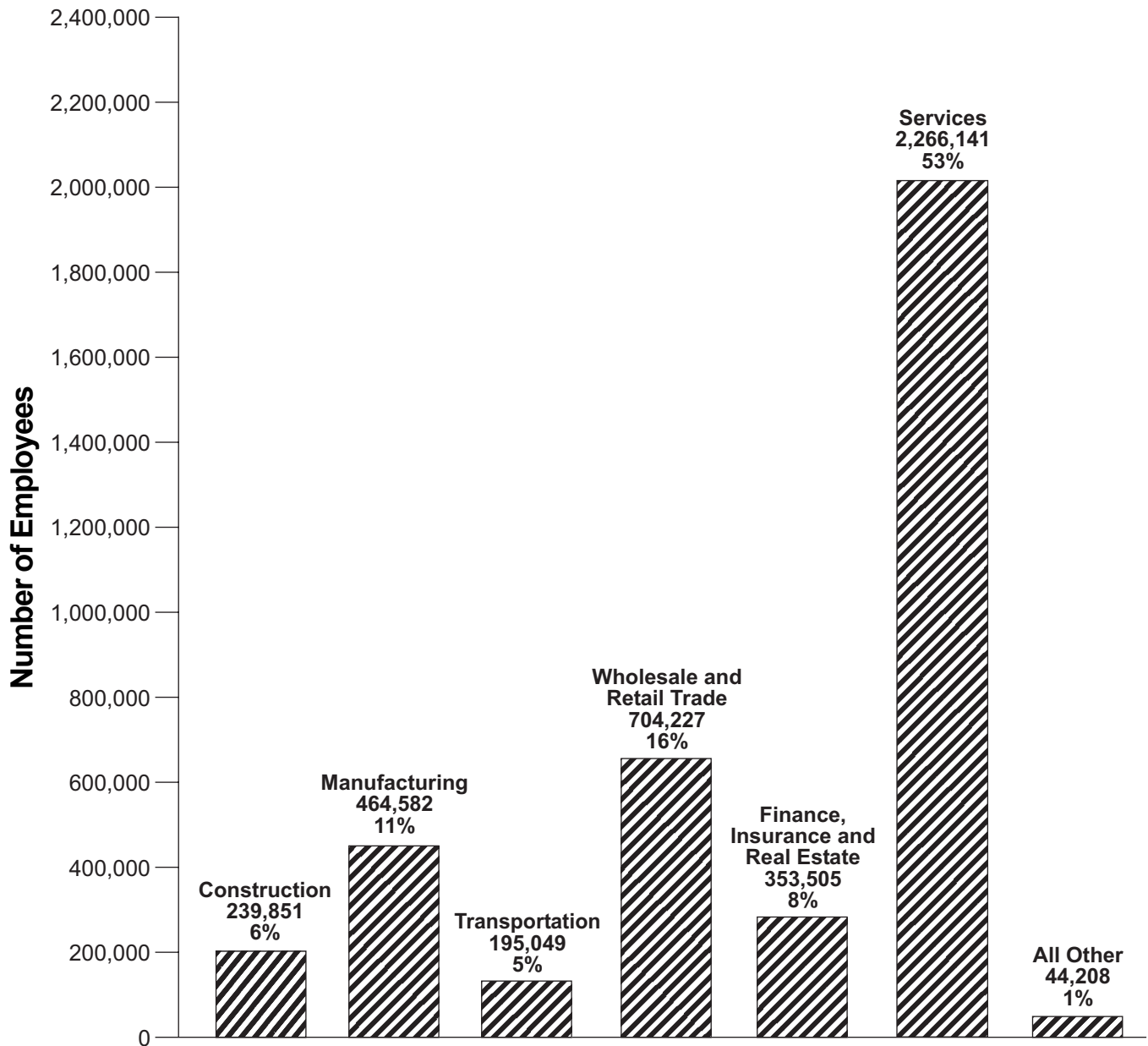
Text Table 5
State Demographic Profile
Public Sector

Public Sector	Establishments*	Employees*
State	1,521	175,445
Local	4,767	411,198
Total Public Sector	6,288	586,643

* Source: *Employment and Wages in North Carolina*, Division of Employment Security,
N.C. Department of Commerce, Third Quarter 2021.

N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021

Text Table 6
State Demographic Profile
By Private Sector Employees*



* Source: *Employment and Wages in North Carolina*, Division of Employment Security, N.C. Department of Commerce, Third Quarter 2021.

**North Carolina Top 25
Most Frequently Cited
“Serious” Violations**

N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021

Top 25 Most Frequently Cited “Serious” Violations Construction Standards*

Standard Violated	Total Violations	Serious Violations	Serious Percent	Willful Violations	Repeat Violations	Other Violations	Brief Description
1926.501(b)(13)	414	331	80	0	83	0	Fall protection—Residential construction—Employees protected 6 feet or more above lower level
1926.102(a)(1)	244	204	84	0	39	1	Personal protective equipment—Eye and face protection—General requirements
1926.1053(b)(1)	143	136	95	0	6	1	Ladders—Use—Must extend 3 feet above landing or be properly secured to access upper landing
1926.503(b)(1)	176	122	69	0	4	50	Fall protection—Written certification of training
1926.20(b)(2)	109	103	94	0	3	3	General safety and health provisions— Accident prevention—Frequent and regular inspections by competent person
1926.100(a)	106	103	97	0	3	0	Personal protective equipment—Head protection—General requirements
1926.503(a)(1)	77	74	96	0	3	0	Fall protection—Training program
1926.1053(b)(13)	56	53	95	0	0	3	Ladders—Use—Top step not used as a step
1926.1053(b)(4)	41	35	85	0	1	5	Ladders—Use—Used for the purpose for which designed
1926.1060(a)	30	29	97	0	0	1	Stairways and ladders—Training program
1926.501(b)(10)	24	24	100	0	0	0	Fall protection—Low-slope roofs— Employees protected 6 feet or more above lower level
1926.1051(a)	23	23	100	0	0	0	Stairways and ladders—Stairway or ladder provided where break in elevation of 19 inches or more
1926.20(b)(1)	23	23	100	0	0	0	General safety and health provisions—Accident prevention program
1926.501(b)(1)	22	22	100	0	0	0	Fall protection—Unprotected sides and edges— Employees protected 6 feet or more above lower level
1926.454(a)	23	21	91	0	0	2	Scaffolds—Training requirements
1926.501(b)(14)	23	21	91	0	2	0	Fall protection—Wall openings—Employees protected 6 feet or more above lower level
1926.501(b)(11)	24	20	83	0	4	0	Fall protection—Steep roofs—Employees protected 6 feet or more above lower level
1926.451(g)(1)(vii)	22	19	86	1	2	0	Scaffolds—Fall protection—Employees protected by personal fall arrest/guardrail system
1926.502(d)(17)	19	19	100	0	0	0	Personal fall arrest systems—Attachment point location of body belts and body harnesses
1926.300(c)	19	18	95	0	1	0	Tools—Hand and power—Personal protective equipment provided and maintained when necessary
1926.451(b)(2)	18	16	89	0	0	2	Scaffolds—Platforms and walkways at least 18 inches wide
1926.453(b)(2)(v)	16	16	100	0	0	0	Scaffolds—Aerial lifts—Extensible and articulating boom platforms—Body belts and lanyards worn/used
1926.451(f)(7)	16	15	94	0	0	1	Scaffolds—Scaffold erection, moving, dismantling or alteration shall be done under supervision and direction of competent person and by experienced and trained employees
1926.451(c)(2)	15	15	100	0	0	0	Scaffolds—Criteria for supported scaffolds—Poles, legs, posts, frames, and uprights shall bear on base plates and mud sills or other adequate firm foundation
1926.21(b)(2)	14	14	100	0	0	0	Safety training and education—Employer responsibility—Instruction in the recognition and avoidance of unsafe conditions

* Data from the OSHA Express database, “Standards Cited Report,” run 1-12-22.

**N.C. Department of Labor
Occupational Safety and Health Division**

CHART 28

October 2020–September 2021

Top 25 Most Frequently Cited “Serious” Violations General Industry Standards*

Standard Cited	Total Violations	Serious Violations	Serious Percent	Willful Violations	Repeat Violations	Other Violations	Brief Description
1910.212(a)(1)	75	69	93	2	4	0	Machine guarding—Types of guarding
1910.147(c)(4)(i)	64	57	89	2	5	0	Control of hazardous energy—Lockout/tagout—Energy control procedures
1910.147(c)(6)(i)	51	42	82	0	4	5	Control of hazardous energy—Lockout/tagout—Periodic inspection at least annually
95.129(01)	39	38	97	1	0	0	General Duty Clause
1910.212(a)(3)(ii)	34	31	91	1	2	0	Machine guarding—Point of operation guarding
1910.133(a)(1)	28	25	39	0	0	3	Personal protective equipment—Eye and face protection— General requirements
1910.147(c)(7)(i)(A)	24	24	100	0	0	0	Control of hazardous energy—Lockout/tagout—Authorized employee training on hazard recognition
1910.1200(h)(1)	86	23	27	0	4	59	Hazard communication—Information and training
1910.28(b)(1)(i)	21	19	90	1	1	0	Fall Protection—Unprotected sides and edges—Employees protected 4 feet or more above lower level
1910.178(l)(1)(i)	20	19	95	0	0	1	Powered industrial trucks—Operator training
1910.1200(e)(1)	85	18	21	0	1	66	Hazard communication—Written program
1910.132(d)(1)	23	16	70	0	0	7	Personal protective equipment—Workplace equipment—Workplace hazard assessment
1910.132(a)	18	16	89	0	0	2	Personal protective equipment—General requirements— Provided when necessary
1910.215(a)(4)	16	16	100	0	0	0	Machine guarding—Abrasive wheel machinery—Work rests
1910.178(l)(4)(iii)	28	15	54	0	0	13	Powered industrial trucks—Operator training—Evaluation of operator performance at least once every three years
1910.215(b)(9)	15	15	100	0	0	0	Machine guarding—Abrasive wheel machinery— Exposure adjustment
1910.219(d)(1)	15	15	100	0	0	0	Mechanical power-transmission apparatus—Pulleys—Guarding
1910.212(b)	15	14	93	0	0	1	Machine guarding—Anchoring fixed machinery
1910.219(c)(2)(i)	13	13	100	0	0	0	Mechanical power-transmission power—Guarding apparatus—Guard horizontal shafting
1910.178(q)(7)	23	12	52	0	0	11	Powered industrial trucks—Maintenance—Examined before placed in service
1910.151(c)	16	12	75	0	0	4	Medical and first aid—Eyewash and emergency showers—Suitable facilities for quick drenching or flushing of eyes and body
1910.1200(g)(8)	65	11	17	0	0	54	Hazard Communication—Safety data sheets—Copies of safety data sheets maintained and readily accessible in each workplace
1910.242(b)	13	11	85	0	1	1	Hand and portable power tools—Compressed air for cleaning—Chip guard and personal protective equipment with pressure reduced to 30 psi
1910.219(e)(3)(i)	11	11	100	0	0	0	Mechanical power-transmission apparatus—Vertical and inclined belts—Guarding
1910.243(c)(1)	11	11	100	0	0	0	Hand and portable powered tools—Portable abrasive wheels—General requirements

* Data from the OSHA Express database, “Standards Cited Report,” run 1-12-22.

N.C. Department of Labor
Occupational Safety and Health Division
October 2020-September 2021

Top 10 Most Frequently Cited “Serious” Violations Public Sector*

Standard Violated	Total Violations	Serious Violations	Serious Percent	Willful Violations	Repeat Violations	Other Violations	Brief Description
1910.212(a)(1)	6	6	100	0	0	0	Machine guarding—Types of guarding
95.129(01)	6	6	100	0	0	0	General Duty Clause
1910.215(b)(9)	4	4	100	0	0	0	Machine guarding—Abrasive wheel machinery—Exposure adjustment
1910.134(e)(1)	6	3	50	0	0	3	Personal protective equipment—Respiratory protection—Medical evaluation
1910.147(c)(6)(i)	5	3	60	0	0	2	Control of hazardous energy—Lockout/tagout—Periodic inspection at least annually
1910.253(b)(2)(ii)	5	3	60	0	0	2	Oxygen-fuel gas welding and cutting—Cylinder storage requirements
1910.147(c)(4)(i)	3	3	100	0	0	0	Control of hazardous energy—Lockout/tagout—Energy control procedures
1910.215(a)(4)	3	3	100	0	0	0	Machine guarding—Abrasive wheel machinery—Work rests
1910.1200(e)(1)	9	2	22	0	0	7	Hazard communication—Written program
1910.1200(e)(1)(i)	6	2	33	0	0	4	Hazard communication—Written program—Hazardous chemical list

* Data from the OSHA Express database, “Standards Cited Report,” run 1-12-22.

Consultation Series

**N.C. Department of Labor
Occupational Safety and Health Division
October 2018–September 2021**

Consultation Series Highlights

- The Consultative Services Bureau conducted 1,425 total consultative visits in FY 2021:
 - 862 (60 percent) safety visits and 563 (40 percent) health visits.
 - 1,204 (84 percent) initial visits, 135 (10 percent) training assistance visits and 86 (6 percent) follow up visits.
 - 1,199 (84 percent) private sector visits and 226 (16 percent) public sector visits.
 - 322 (22 percent) manufacturing visits, 536 (38 percent) construction visits, 341 (24 percent) other type visits and 226 (16 percent) public sector visits.
- Hazards identified and eliminated as a result of consultative visits totaled 5,545 in FY 2021, higher than in FY 2020 (5,335) and lower than in FY 2019 (8,163).
- Of the identified hazards, 5,068 (91 percent) were serious hazards, 414 (8 percent) were other-than-serious hazards and 63 (1 percent) were regulatory hazards.
- In FY 2021 consultants also conducted 260 safety and health interventions, which included speeches, training programs, program assistance, interpretations, conference/seminars, outreach, and other interventions.
- The bureau continues to focus on small and high hazard employers and encourage participation in the Safety and Health Achievement Recognition Program (SHARP). There are currently 160 SHARP employers (110 general industry, 45 public sector, and five construction). There was a total of six pre-SHARP participants.

Total Visits by Category

Category	FY 2019	FY 2020	FY 2021
Safety	1,056	836	862
Health	647	435	563
Total	1,703	1,271	1,425

Total Visits by Type

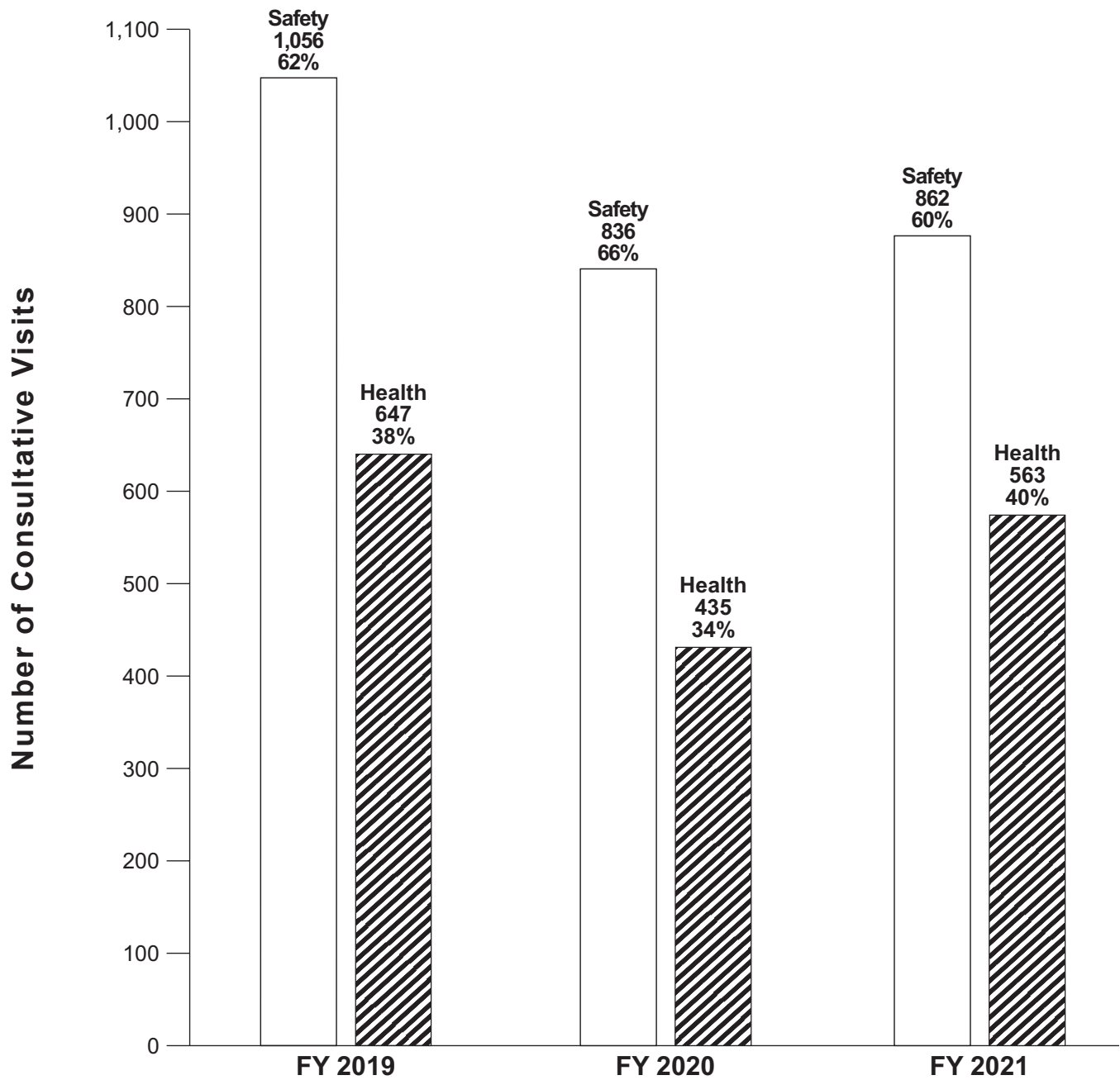
Type	FY 2019	FY 2020	FY 2021
Initial	1,419	1,070	1,204
Training and Assistance	150	129	135
Followup	134	72	86
Total	1,703	1,271	1,425

Total Visits by Industry Type

Industry	FY 2019	FY 2020	FY 2021
Manufacturing	410	264	322
Construction	638	479	536
Other	405	313	341
Public Sector	250	215	226
Total	1,703	1,271	1,425

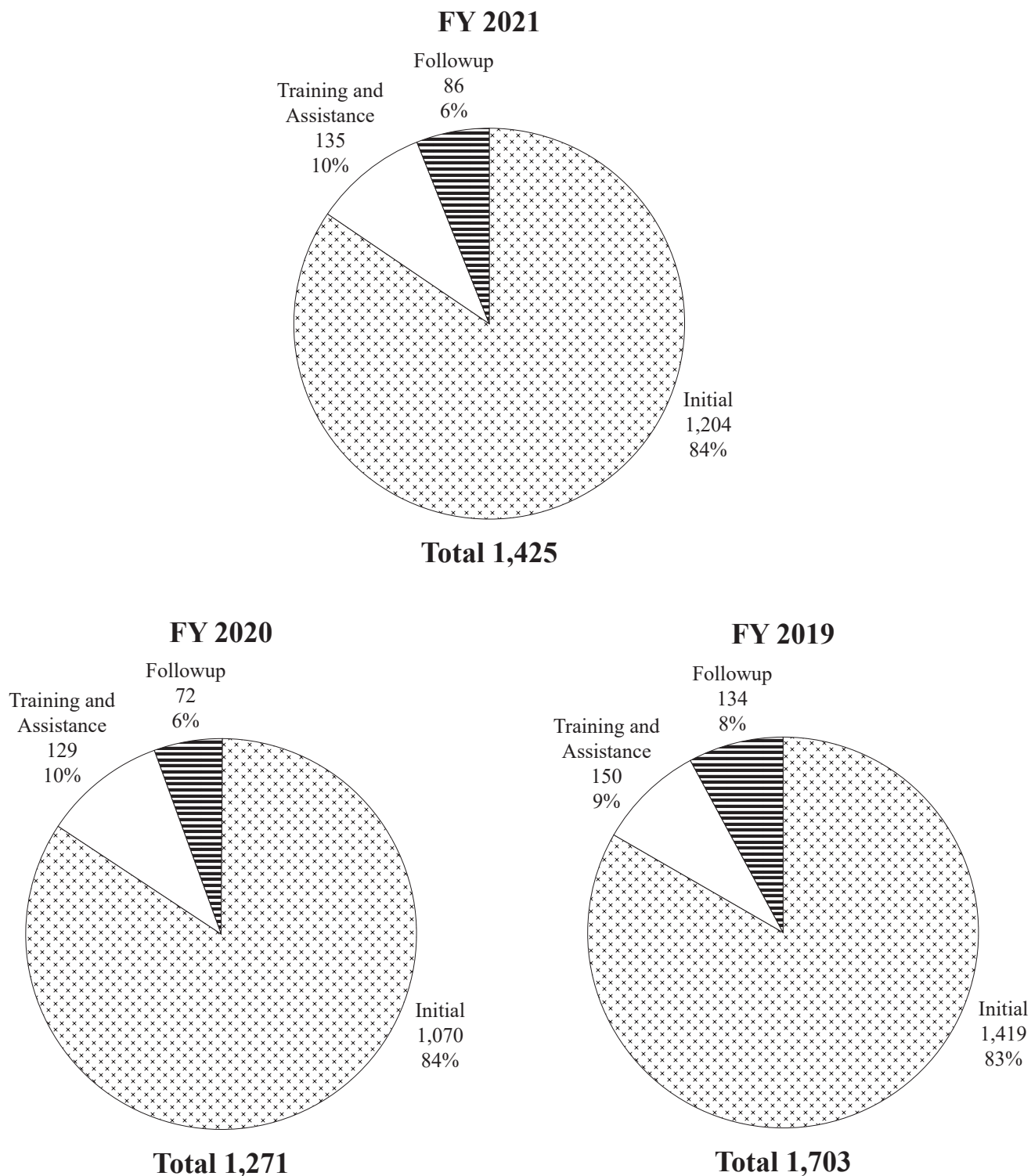
N.C. Department of Labor
Occupational Safety and Health Division
October 2018–September 2021

Total Visits*



* FY 2021 N.C. data from the OSHA Express database, reports prepared 12-15-21.

Total Traditional Visits by Type*

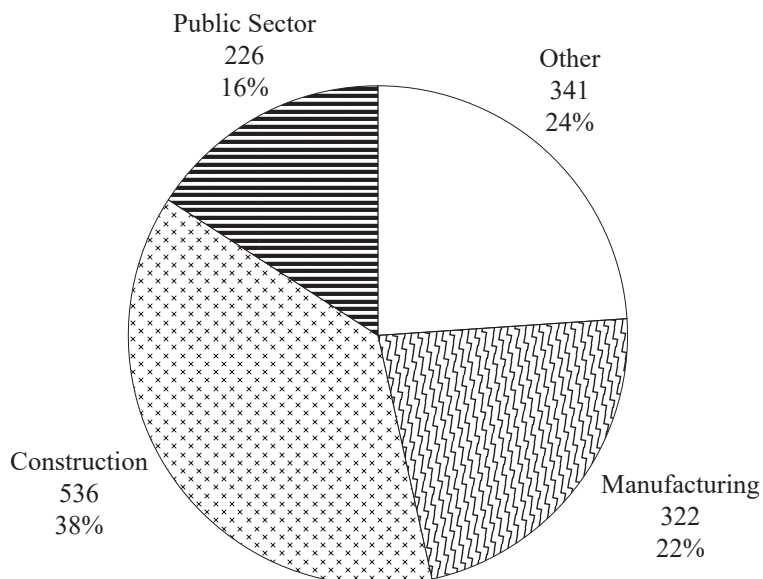


* FY 2021 N.C. data from the OSHA Express database, reports prepared 12-15-21.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2018–September 2021**

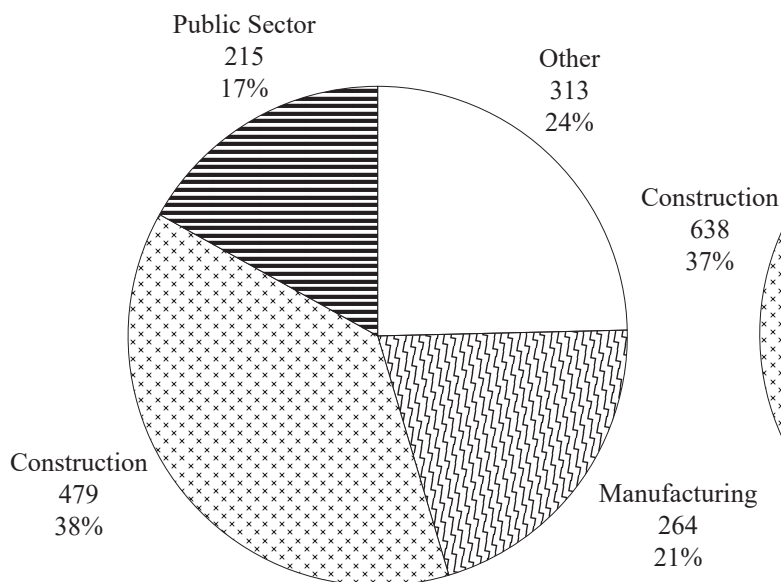
Total Traditional Visits by Industry*

FY 2021



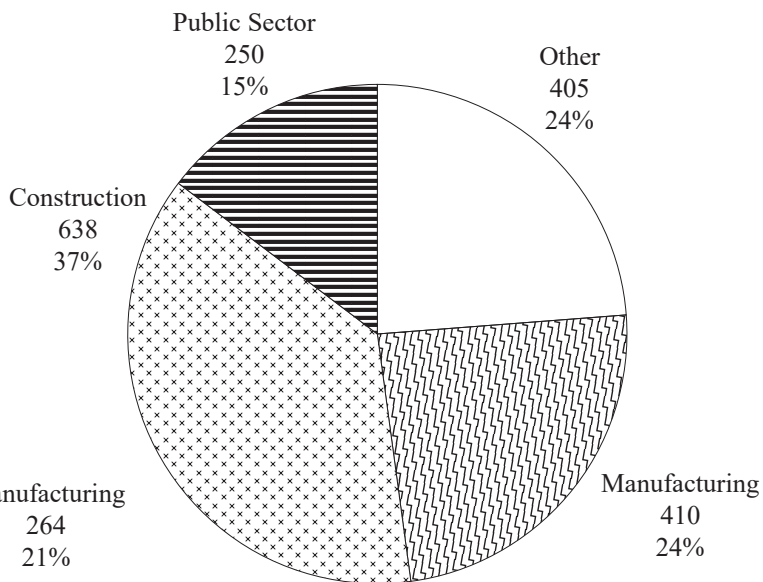
Total 1,425

FY 2020



Total 1,271

FY 2019

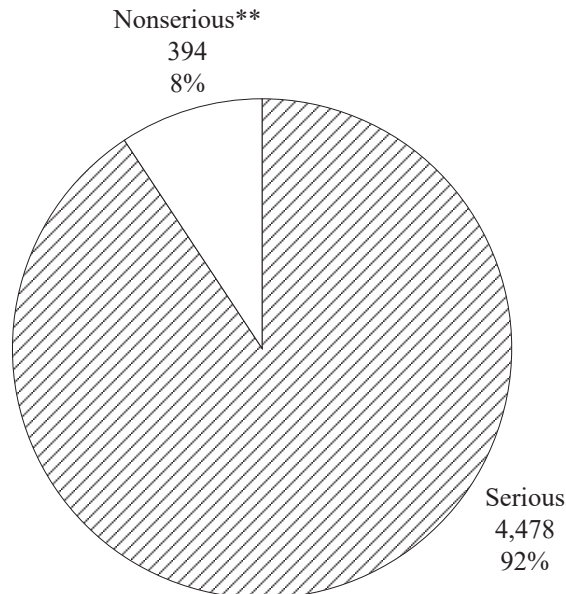


Total 1,703

* FY 2021 N.C. data from the OSHA Express database, reports prepared 12-15-21.

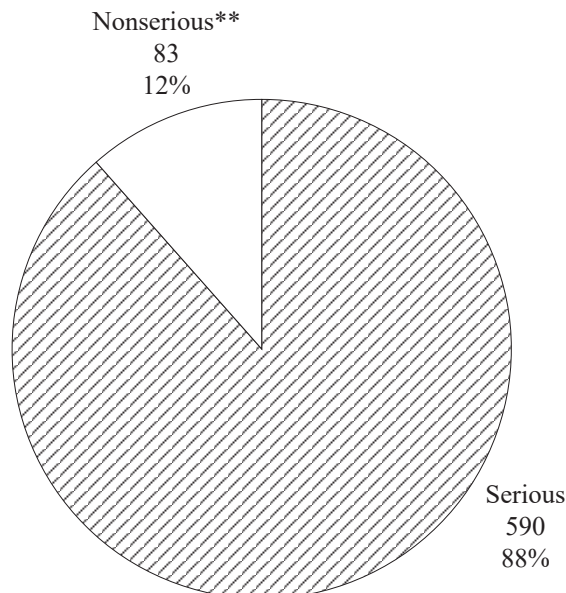
Hazards Abated by Type*

Private Sector



Total 4,872

Public Sector



Total 673

* FY 2021 N.C. data from the OSHA Express database, reports prepared 12-15-21.

** “Nonserious” total also include regulatory hazards abated.

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**Education, Training and
Technical Assistance Series**

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020-September 2021**

Education, Training and Technical Assistance Series Highlights

- In FY 2021, the Education, Training and Technical Assistance (ETTA) Bureau hosted and/or participated in 175 courses and events with a total of 3,663 personnel trained. These included seven 10-hour and one 30-hour general industry awareness courses, and five 10-hour and one 30-hour construction industry awareness courses. In addition, ETTA conducted 104 webinars, three Spanish outreach events, and one training event using the Labor One mobile training unit. The Consultative Services Bureau trained an additional 3,934 employers/employees, which brought an overall total of 7,597 workers trained. ETTA provided training and support for 35 Speaker's Bureau events, to include exhibiting at four booth events/safety and health fairs.
- Three OSH staff members attained the OSHA Training Institute (OTI) 500 and/or OTI 501 Train-the-Trainer authorization from the OTI at N.C. State University. In addition, one OSH personnel attended the 502/503 refresher courses and were reauthorized as trainers. To be eligible for this program, employees must be recommended by their supervisor and/or bureau chief. This authorization allows an employee to teach state and federal OSHA 10-hour and 30-hour courses.
- ETTA offered 149 hours of formal training, 179 hours of continuing education and four hours of other job-related training to internal personnel. Courses included the OSH 100 - Initial Compliance Course, OSH 105 - Introduction to Safety Standards for Safety Officers, OSH 123/131 - Accident Investigation and Interviewing Techniques, Technical Writing, Eight-hour Hazardous Waste Operations and Emergency Response, Defensive Driver, 10- hour General Industry and Construction Industry Awareness courses, Fall Protection, Long Term Care Special Emphasis Program (SEP), Food Manufacturing SEP, Health Hazards SEP, Lockout-Tagout, Machine Guarding, COVID-19 training, and a variety of individual safety and health webinars.
- Seven OSH personnel attained the Certified Safety Professional (CSP) credential. The CSP is a safety and/or health professional who has met education and experience requirements, has demonstrated by examination the knowledge that applies to professional safety practice, continues to meet recertification requirements established by the Board of Certified Safety Professionals (BCSP), and is authorized by BCSP to use the CSP credential.
- Four OSH personnel attained the Associate Safety Professional (ASP) credential. The ASP is an independent certification awarded by BCSP. This certification denotes that an individual has met academic requirements and has passed the Safety Fundamentals Examination (the first of two examinations leading to the CSP).
- One OSH personnel attained the Certified Industrial Hygienist (CIH) designation. The CIH is a safety and/or health professional who has met education and experience requirements, has demonstrated by examination the knowledge that applies to the professional practice of industrial hygiene, continues to meet recertification requirements established by the American Board of Industrial Hygiene (ABIH), and is authorized by ABIH to use the CIH designation
- In collaboration with N.C. State Industry Expansion Solutions and the Safety and Health Council of North Carolina, ETTA graduated four OSH personnel from the Manager of Environmental Safety and Health (MESH), Construction MESH, Public Sector MESH and/or Industrial Hygiene MESH certificate program. Participants receive a certificate after receiving 100 hours of safety and health training.
- Three OSH personnel attained the Occupational Training Institute (OTI) 500 and/or OTI 501 Train the Trainer authorization from the OTI at N.C. State University. In addition, four OSH personnel attended the 502/503 refresher courses and were reauthorized as trainers. To be eligible for this program, employees must be recommended by their supervisor and/or bureau chief. This authorization allows an employee to teach state and federal OSHA 10-hour and 30-hour courses.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020-September 2021**

Education, Training and Technical Assistance Series Highlights (Continued)

- ETTA manages the OSH Alliances Program. The purpose of the program is to foster relationships with industry that will leverage OSH Division resources and decrease the number of injuries and illnesses in the state. An alliance is a program enabling organizations committed to safety and health to work with OSH to prevent injuries, illnesses, and fatalities in the workplace. Alliances typically focus on specialized industry outreach and training.
- Current alliances include the following: Carolinas Associated General Contractors (CAGC), Lamar Advertising Co., Mexican Consulate, N.C. State – Industry Expansion Solutions, National Utility Contractors Association of the Carolinas (NUCA), the Safety and Health Council of North Carolina, and the North Carolina Association of Local Governmental Employee Safety Officials (NCALGESO).
- Through an alliance with Lamar Advertising, ETTA contributed to the designs of eight billboards located on prominent highways in N.C. The billboards addressed the following topics: COVID-19 Safe Workplaces (two), the COVID-19 Emergency Temporary Standard for Healthcare (two), Grain Safety Stand Up, Fall Prevention Stand Down, the Safe and Sound Week and Heat Stress.
- ETTA Publications Sales Desk served 2,933 customers via email, fax, telephone, or walk-in. The bureau distributed 21,284 publications in support of the division's outreach and regulatory goals to promote a safe and secure work environment across the state of North Carolina.
- Highlights include the following:
 - ETTA developed a new example Heat Stress Prevention Program for Agriculture in English and Spanish. An example COVID-19 Preparedness Plan for Low and Moderate Risk Business was revised.
 - Revised 33 publications including brochures, industry guides, hazard alerts and frequently asked questions, covering multiple safety and health topics. This included brochures on the following: Public Sector Survey, Top Ten Cited Serious Standards, Green Tobacco Sickness, Manager of Environmental Safety and Health Program, Medical-Dental Industry, Safety Briefings for General Industry, Toolbox Reviews for the Construction Industry, and Safety Awards. Industry guides included Standards Requiring Programs, Inspections, Procedures, Records and/or Training in General Industry, Construction, Marine Terminals, Shipyards and Agriculture, as well as industry guides on OSHA for Small Businesses in NC and Occupational Safety and Health Standards for Agriculture. Hazard alerts on COVID-19 Safety and Health Guidelines for the Construction Industry and COVID-19 Safety and Health Guidelines for the Agriculture Industry were also revised. Frequently asked questions on COVID-19 in English and Spanish were revised several times.
 - The Standards Section reviewed and edited all existing safety and health topic pages on the NCDOL website.
 - ETTA mailed an outreach letter to 40 construction employers with five or more serious violations. The letter provided employers with information regarding OSH outreach services and publications. This letter is an outreach strategy used by the Construction SEP committee to lower injury and illness rates in construction.
 - The Standards Section responded to 2,785 standard inquiries.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Education, Training and Technical Assistance Series Highlights (Continued)

- Final rules adopted in NC included the Emergency Temporary Standard for Occupational Exposure to COVID-19 in the Healthcare Industry (29 CFR 1910 Subpart U), Cranes and Derricks in Construction: Railroad Roadway Work (29 CFR 1926 Subpart CC), and the revised rules for Occupational Exposure to Beryllium and Beryllium Compounds in General Industry, Construction and Shipyard Sectors (29 CFR, 1910.1024, 29 CFR 1926.1124 and 29 CFR 1915.1024).
- ETTA added 27 documents to the Field Information System including updates to the Field Operations Manual, revised OSH Division policies, and adoption of multiple Federal OSHA Instructions and Final Rules. ETTA, PSIM, Compliance, and/or Legal Affairs work jointly to update and revise FIS documents.
- ETTA participated in one Inside NC Labor podcast on the safety awards banquet season.
- The NCDOL Library loaned out 407 items (e.g., consensus standards, safety videos, certification exam preparation books) to NCDOL employees and registered public patrons. Additionally, the library responded to 647 information requests and 250 reference questions, provided streaming video access (via Streamery) to 60 patrons, served 210 visitors, acquired 160 items for the collection and cataloged 201 items. The librarian alerted staff to webinars and articles, referred patrons to online resources, and assisted NCDOL OSH employees in their preparation for professional certification examinations via books and software access.
- One new Star site was recognized, 15 Star sites were recertified, and 134 Star interventions were conducted. There were 146 companies in the Carolina Star Program at the end of FY 2021.
- Due to COVID-19, the Annual Carolina Star Safety Conference was held September 15-17, 2021, with the option of in person or virtual attendance. Total attendance for this event was 305 with 217 attending in person while 88 attended virtually.
- The Carolina Star Program hosted its 2nd Annual Building Star Program Best Practice Workshop, in November of 2020. There was a total of 42 people in attendance with the majority attending virtually.
- Through a Special Star Team Member (SSTM) Program, OSH is able to leverage its limited resources by using specially trained Star site employees and independent private sector safety and health professionals for on-site Star evaluations. During FY 2021, one SSTM received initial training during one training event. Currently, there are 92 SSTM's eligible to assist with Star evaluations.
- The program also includes the use of specially trained OSH Star Team Members (OSTM) from the bureau (bureau chief, supervisors, standards officers, and trainers). Currently, there are 16 OSTM's eligible to assist with Star evaluations, including three OSTM's receiving initial training.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020-September 2021**

Carolina Star Program

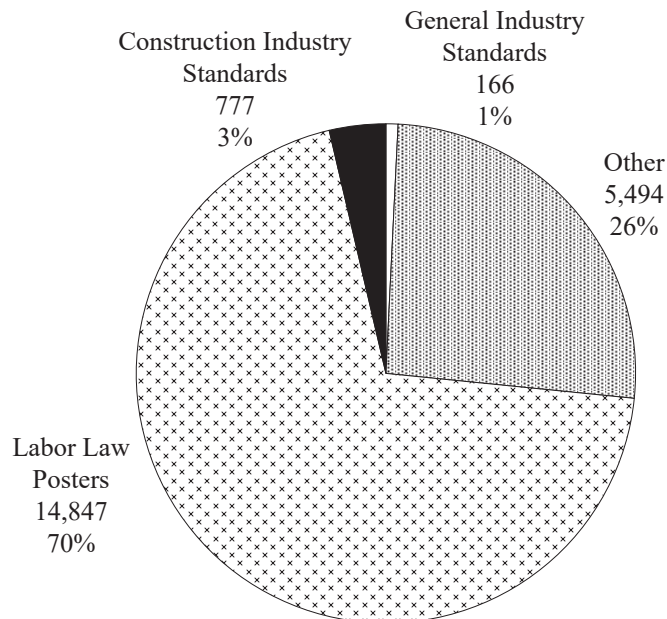
The Carolina Star Program encourages employers and employees in their efforts to reduce hazards, institute new programs and perfect existing programs for providing safe and healthy working conditions. The Carolina Star Program is the state's most prestigious way to provide official recognition of excellent safety and health programs, assistance to employers in their efforts to reach that level of excellence, and the benefits of a cooperative approach to resolve potential safety and health problems. Not only do Star sites affect major industry in the state, but these sites are also mentors and help all businesses of all sizes in improving their safety and health programs. During FY 2021 the following companies were awarded the Carolina Star, Rising Star, Building Star, or Public Sector Star status or were recertified.

Star Site Name and Location	Site Approval Date	Re-Certification Date
BE&K Building Group, Durham		10/7/2020
Marathon Petroleum Company, Selma Buffalo Terminal, Selma		11/4/2020
Marathon Petroleum Company, Selma Oak Terminal, Selma		11/4/2020
Amentum, Durham	11/4/2020	
Choate Construction Co., Charlotte		12/15/2020
EnviroVac Holdings, LLC, Aurora		12/30/2020
NC Department of Environmental Quality, Division of Waste Management, Raleigh		12/30/2020
Pentair Aquatics Pool and Spa, Sanford		2/19/2021
WestRock, Conover Folding, Conover		2/23/2021
Robins & Morton, Charlotte		4/13/2021
Town of Hillsborough, Hillsborough - PROVISIONAL		6/8/2021
3M Scott Fire and Safety, Monroe		6/28/2021
Cintas Corporation, Location #249, Charlotte		6/28/2021
Mallard Creek Polymers, Inc., Charlotte		8/26/2021
SELEE Corporation, Henderson		8/26/2021
Vesuvius USA, Graham		9/13/2021

**N.C. Department of Labor
Occupational Safety and Health Division
October 2018–September 2021**

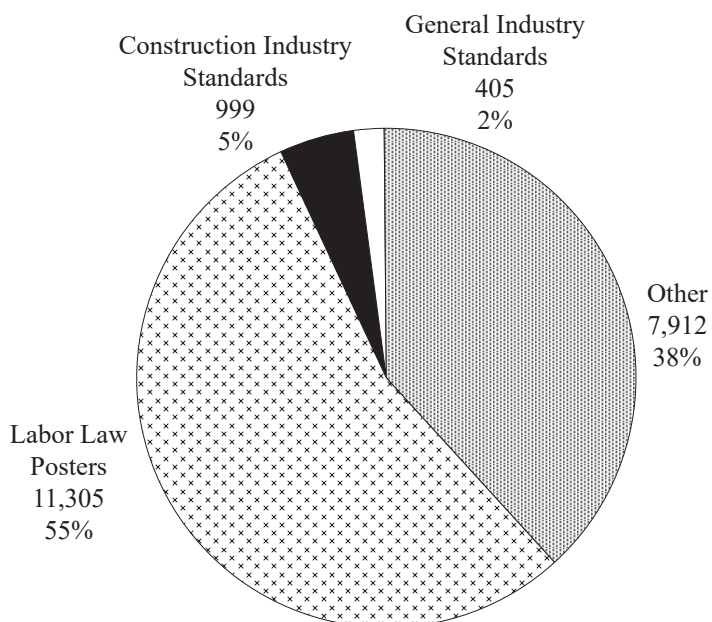
Distribution of OSH-Related Publications*

FY 2021



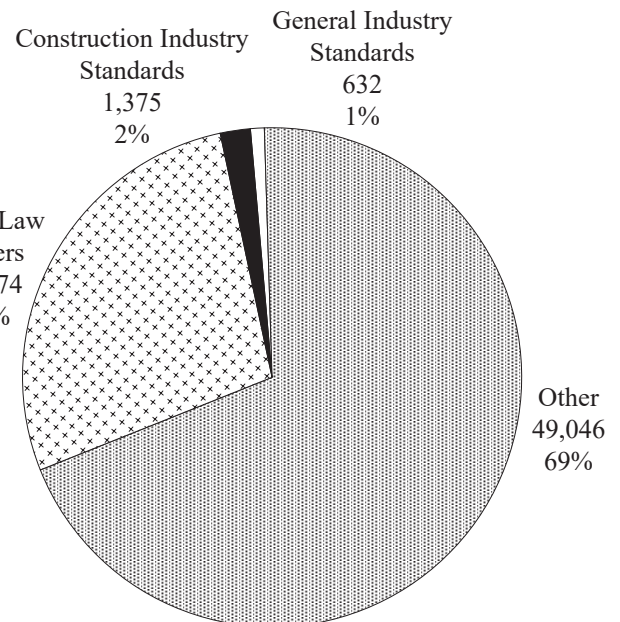
Total 21,284

FY 2020



Total 20,621

FY 2019



Total 70,627

* Data from the Education, Training and Technical Assistance Bureau.

Fatality Series

**N.C. Department of Labor
Occupational Safety and Health Division
October 2018-September 2021**

Fatality Series Highlights

- The NCDOL Occupational Safety and Health Division evaluated and investigated a total of 89 fatalities in FY 2021, an increase from the 79 fatalities in FY 2020 and 54 in FY 2019.
- Of the 89 fatalities in FY 2021, 20 percent were related to “struck by”; 12 percent were related to “falls”; 9 percent were related to “crushed by object”; 6 percent were related to “electrocutions”; and 53 percent were related to “other.” There was a total of thirty-four COVID-19 related fatality cases (included within the “other” category), which accounted for 38 percent of the “other” cases.
- In FY 2021, 20 percent of the fatalities were related to “construction”; 12 percent were related to “manufacturing”; 35 percent were related to “services”; 9 percent were related to “agriculture, forestry, fishing”; 12 percent were related to “government”; 6 percent were related to “transportation and public utilities”, 2 percent were related to “wholesale trade”, and 4 percent were related to “retail trade”.
- The N.C. Department of Labor’s OSH Division consists of three major reporting districts (Raleigh/Wilmington Area, Charlotte Area and Winston-Salem/Asheville Area).
- Of the 89 investigated fatalities in FY 2021, 29 percent were conducted in the Raleigh/Wilmington Area, 30 percent were in the Charlotte Area, and 41 percent were in the Winston-Salem/Asheville Area.
- In FY 2021 the OSH Division fatality rate by race/ethnic group was 58 percent white, 19 percent Hispanic, 20 percent black, 1 percent Asian, and 1 percent other.

CHART 36

Fatality Comparison*

Cause of Death	FY 2019	FY 2020	FY 2021	Totals by Event**
Crushed by Object/Equipment	9	10	8	27
Electrocution	1	2	5	8
Falls	14	17	11	42
Struck by Object	19	22	18	59
Other	11	***28	***47	86
Total Fatalities**	54	79	89	222

* Data from the Occupational Fatality Inspection Review (OFIR) Report.

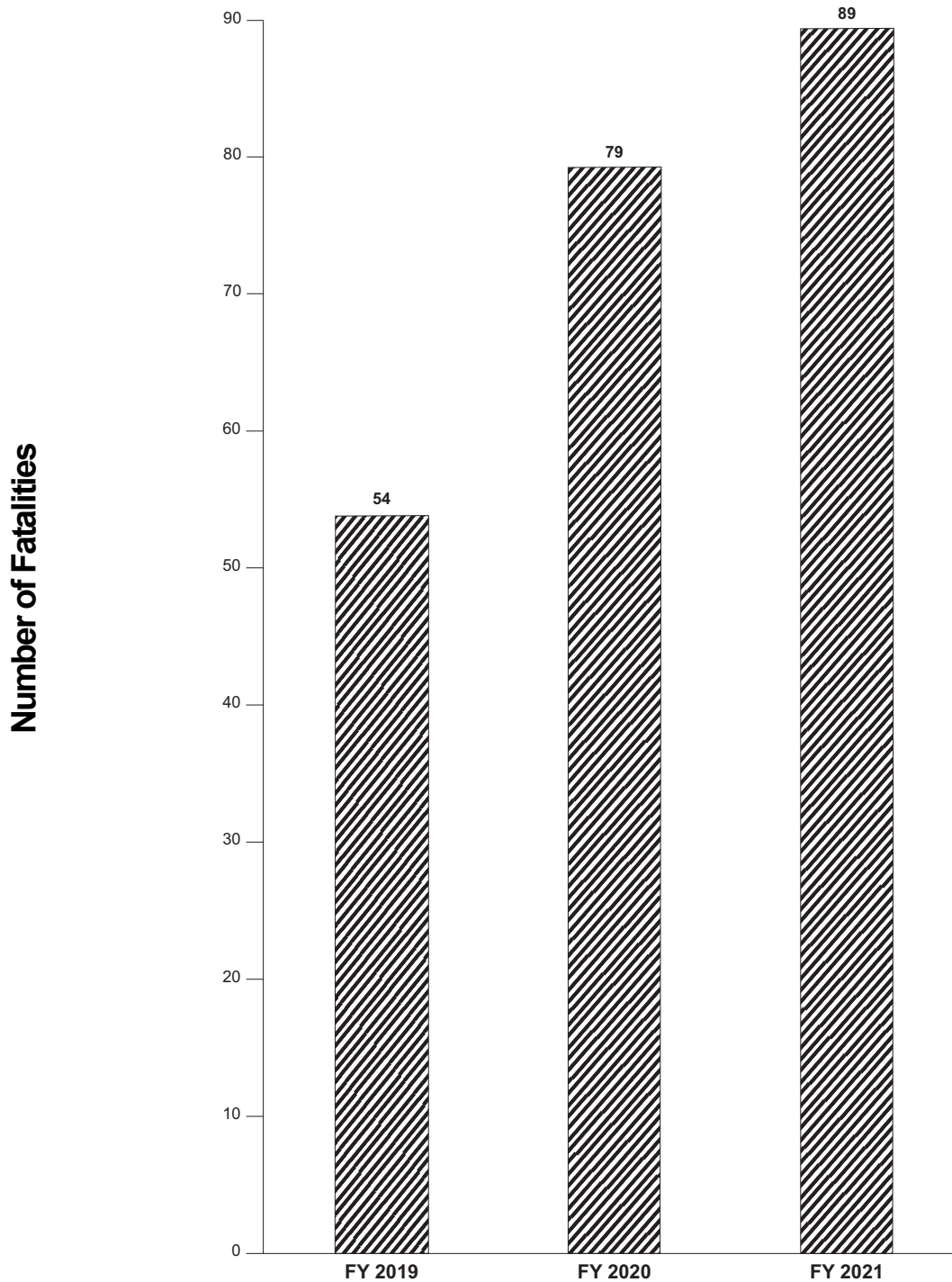
** Totals do not include deaths by natural causes and/or non work-related deaths.

*** FY 2020 and FY 2021 other total include “COVID-19” related cases.

N.C. Department of Labor
Occupational Safety and Health Division
October 2018–September 2021

CHART 37

Fatalities



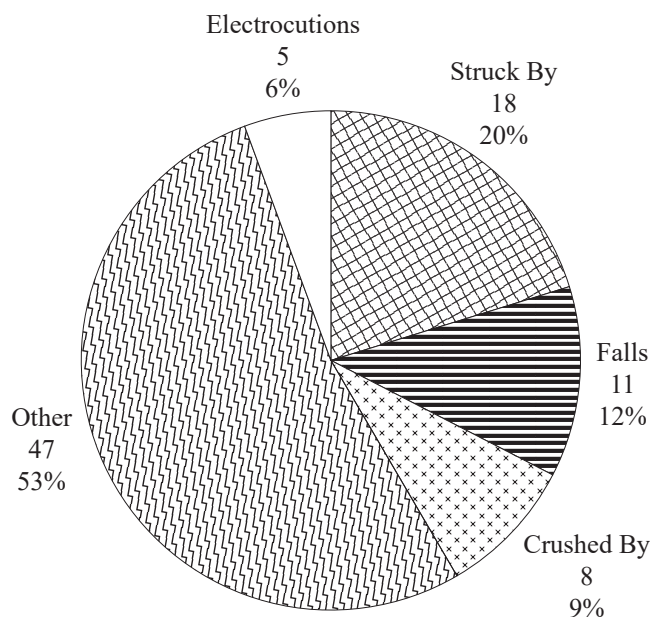
* Data from the Occupational Fatality Inspection Review (OFIR) Report.

** Totals do not include deaths by natural causes and/or non work-related deaths.

N.C. Department of Labor
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 October 2018–September 2021

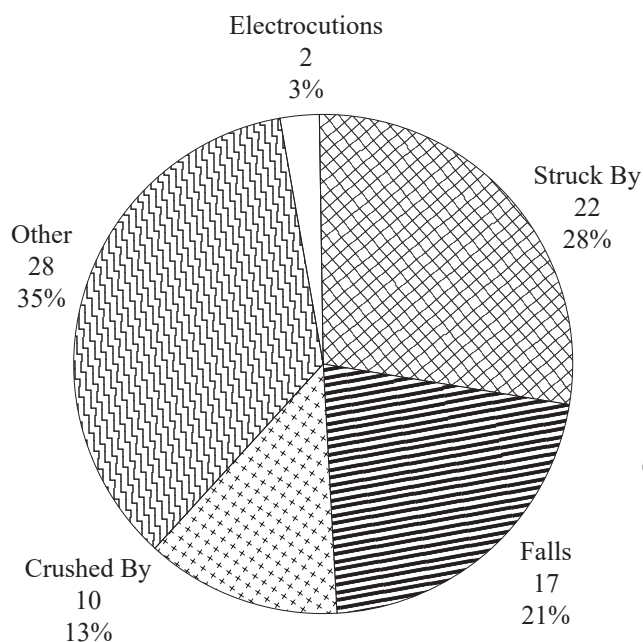
Leading Causes of Investigated Fatalities*

FY 2021



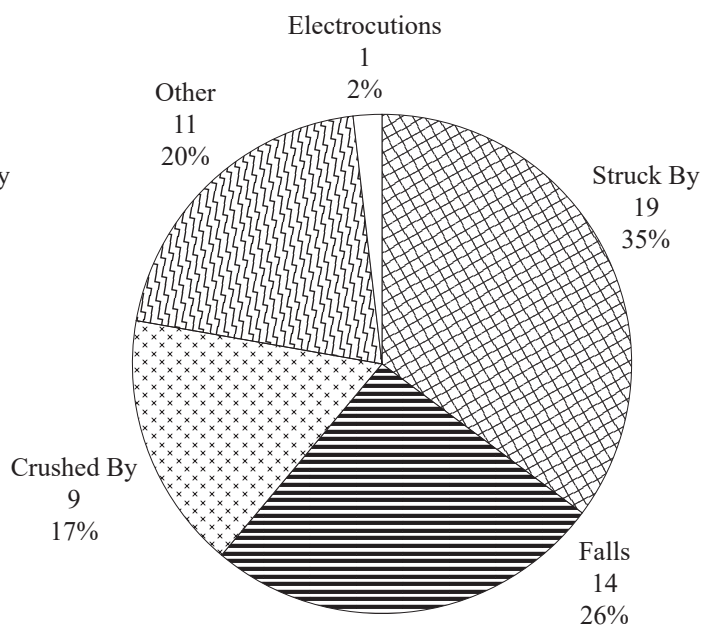
Total 89

FY 2020



Total 79

FY 2019



Total 54

* Data from the Occupational Fatality Inspection Review (OFIR) Report.

** Other total includes “fire/explosion” and other events including the COVID-19 related cases for FY 2021.

*** Totals do not include deaths by natural causes and/or non work-related deaths.

N.C. Department of Labor
Occupational Safety and Health Division
October 2018–September 2021

CHART 39

North Carolina Fatal Events by District Office*

FY 2019

Event Type	Charlotte Office	Raleigh/Wilmington Office	Winston-Salem/Asheville Office	Totals by Event Type**
Crushed by Object/Equipment	5	2	2	9
Electrocution	0	1	0	1
Falls	2	6	6	14
Struck by Object	2	10	7	19
Other	3	7	1	11
Totals by Office**	12	26	16	54

FY 2020

Event Type	Charlotte Office	Raleigh/Wilmington Office	Winston-Salem/Asheville Office	Totals by Event Type**
Crushed by Object/Equipment	5	3	2	10
Electrocution	2	0	0	2
Falls	2	10	5	17
Struck by Object	10	4	7	21
Other	6	17	6	29
Totals by Office**	25	34	20	79

FY 2021

Event Type	Charlotte Office	Raleigh/Wilmington Office	Winston-Salem/Asheville Office	Totals by Event Type**
Crushed by Object/Equipment	2	3	3	8
Electrocution	1	4	0	5
Falls	4	3	4	11
Struck by Object	2	2	14	18
Other	18	14	15	47
Totals by Office**	27	26	36	89

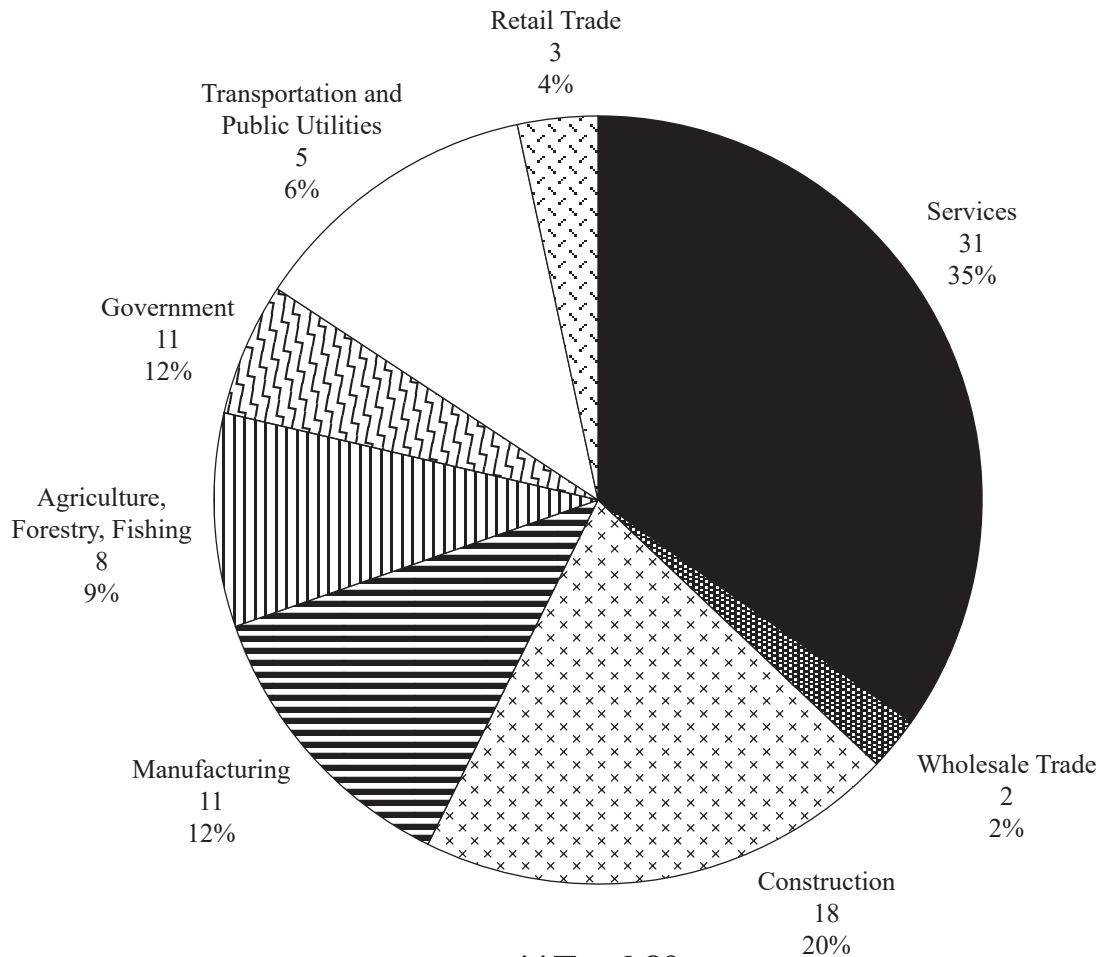
* Data from the Occupational Fatality Inspection Review (OFIR) Report.

** Totals do not include deaths by natural causes and/or non work-related deaths.

N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021

Fatalities by Industry Type*

FY 2021



* Data from the Occupational Fatality Inspection Review (OFIR) Report.

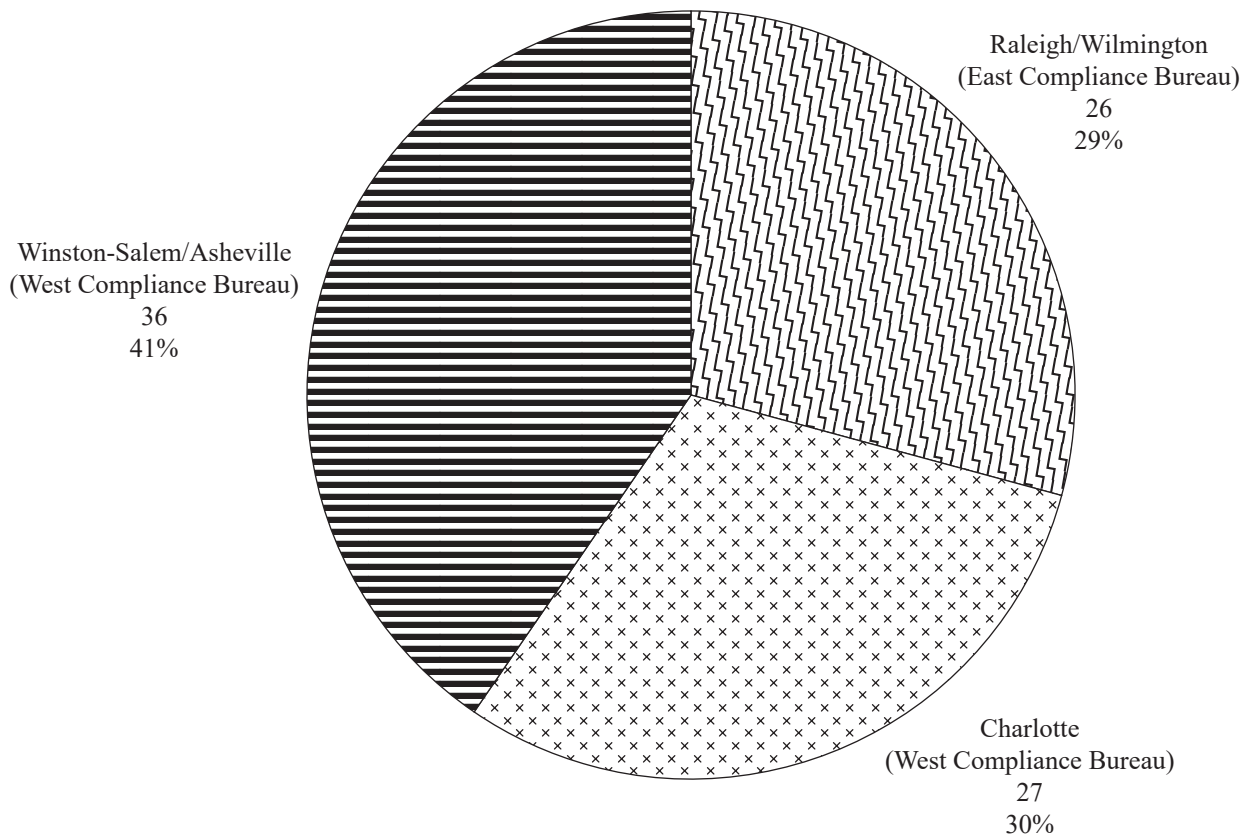
** Totals do not include deaths by natural causes and/or non work-related deaths.

N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021

CHART 41

Fatalities by Office Location*

FY 2021



****Total 89**

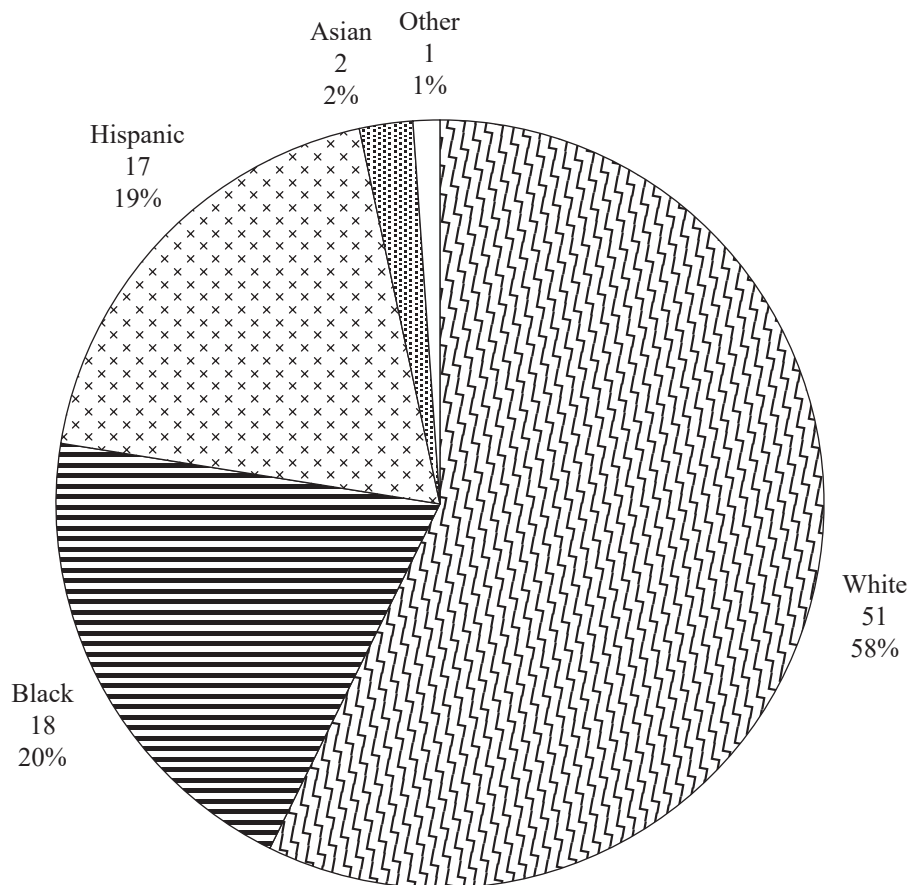
* Data from the Occupational Fatality Inspection Review (OFIR) Report.

** Totals do not include deaths by natural causes and/or non work-related deaths.

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Fatalities by Race/Ethnic Group*

FY 2021



****Total 89**

* Data from the Occupational Fatality Inspection Review (OFIR) Report.

** Totals do not include deaths by natural causes and/or non work-related deaths.

Construction Series

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020-September 2021**

Definition of the Construction Special Emphasis Program

The Occupational Safety and Health Division has a Special Emphasis Program (SEP) for the construction industry that began in FY 1998. This SEP was implemented because the construction industry accounts for 20 percent of workplace fatalities statewide and only 7 percent of the workforce in North Carolina. SEPs are implemented as a strategy for reducing occupational fatalities. A county is included in this SEP if it has experienced more than one construction-related fatality during a fiscal year. If so, the county will come under this emphasis program of compliance, consultation, and/or education and training from the OSH Division.

The following counties constituted the SEP for FY 2021:

- Carteret
- Edgecombe
- Forsyth
- Guilford
- Iredell
- Mecklenburg
- Orange
- Pitt
- Robeson
- Wake
- Wilkes

**N.C. Department of Labor
Occupational Safety and Health Division
October 2020-September 2021**

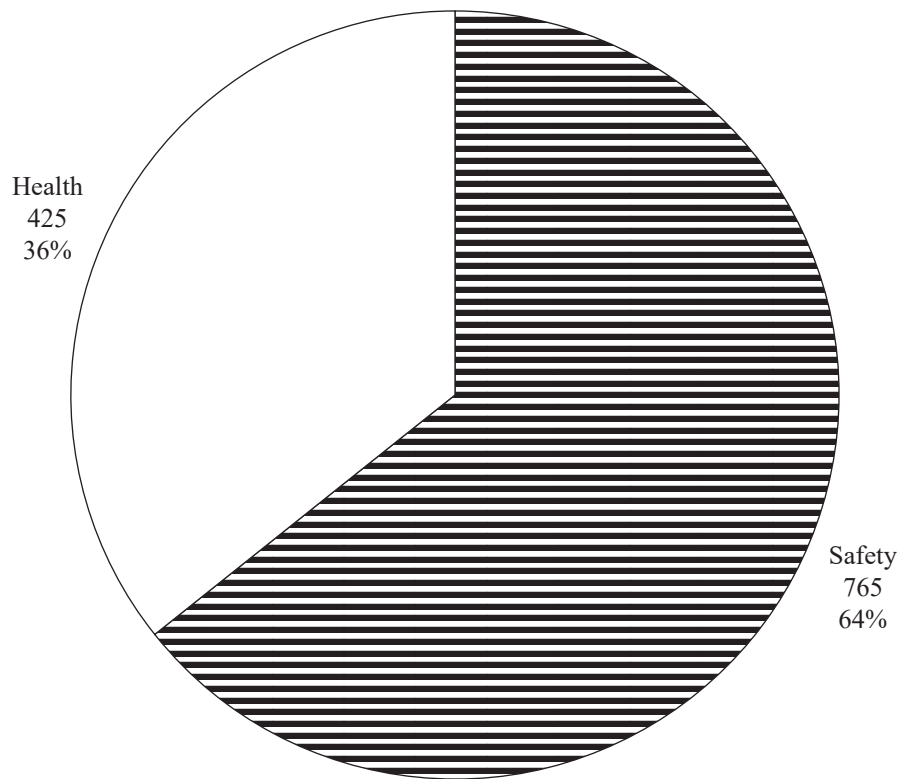
Construction Series Highlights

- There were 1,190 construction industry inspections conducted in North Carolina for FY 2021.
- Of the 1,190 inspections conducted, 765 were safety inspections, which accounted for 64 percent of the total inspections in the construction industry.
- North Carolina conducted 425 health inspections in the construction industry, which accounted for 36 percent of the total for FY 2021.
- 37 percent (438) of all construction industry inspections statewide were in-compliance compared to 63 percent (752) of the total inspections with citations for FY 2021.
- The construction industry was cited for 1,715 serious, willful, and repeat violations during FY 2021.
- Of the 1,190 inspections conducted, 729 (61 percent) resulted from the Construction Special Emphasis Program counties in FY 2021.
- General building contractors of residential buildings and carpentry contractors accounted for 55 percent (652) of all FY 2021 construction industry inspections in North Carolina.

N.C. Department of Labor
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Construction Inspections by Category*

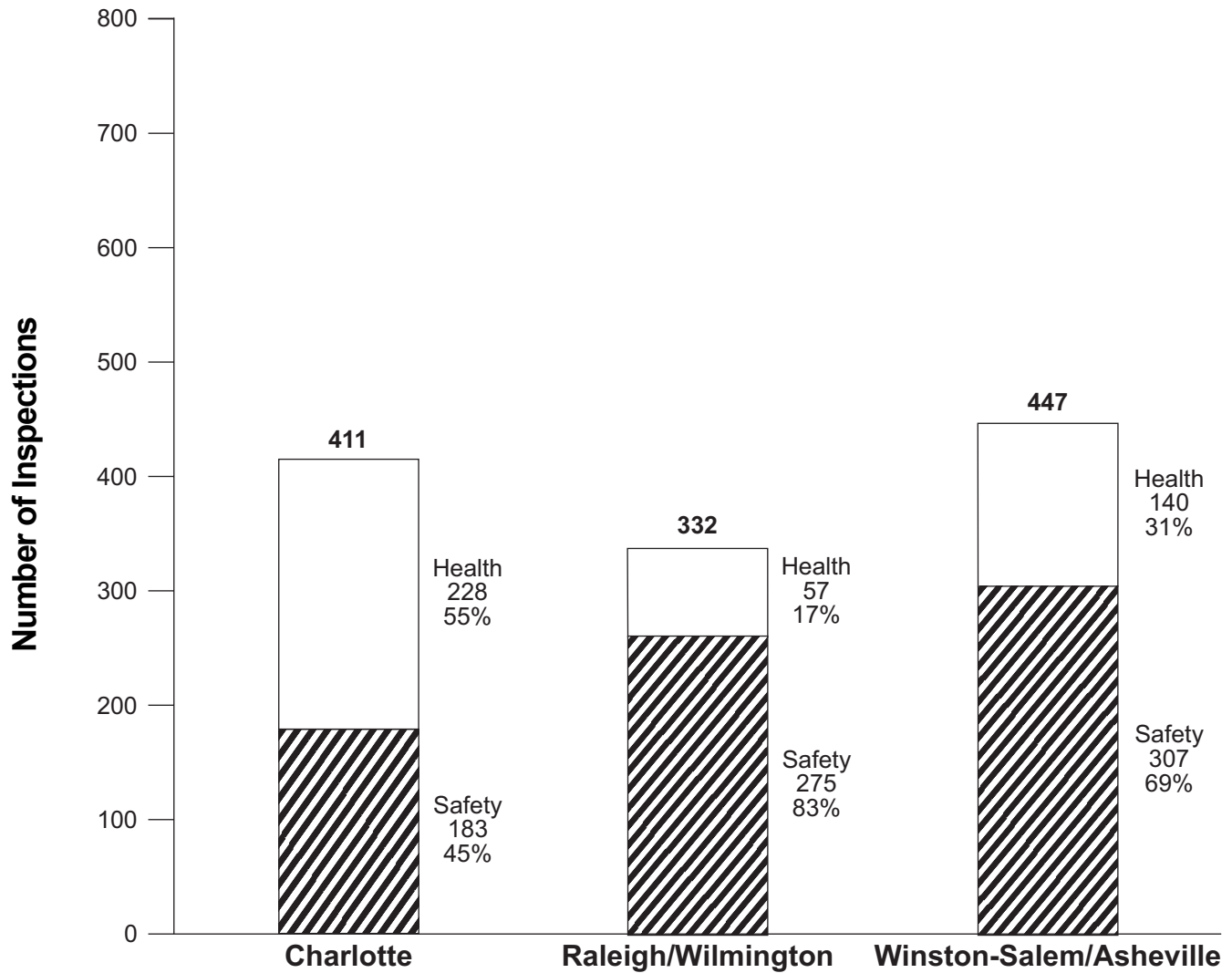
FY 2021



Total 1,190

* N.C. data from the OSHA Express database, “Inspection Summary Report,” run 1-12-22.

Construction Inspections by OSH Field Office*



* N.C. data from the OSHA Express database, “Inspection Summary Report,” run 1-12-22.

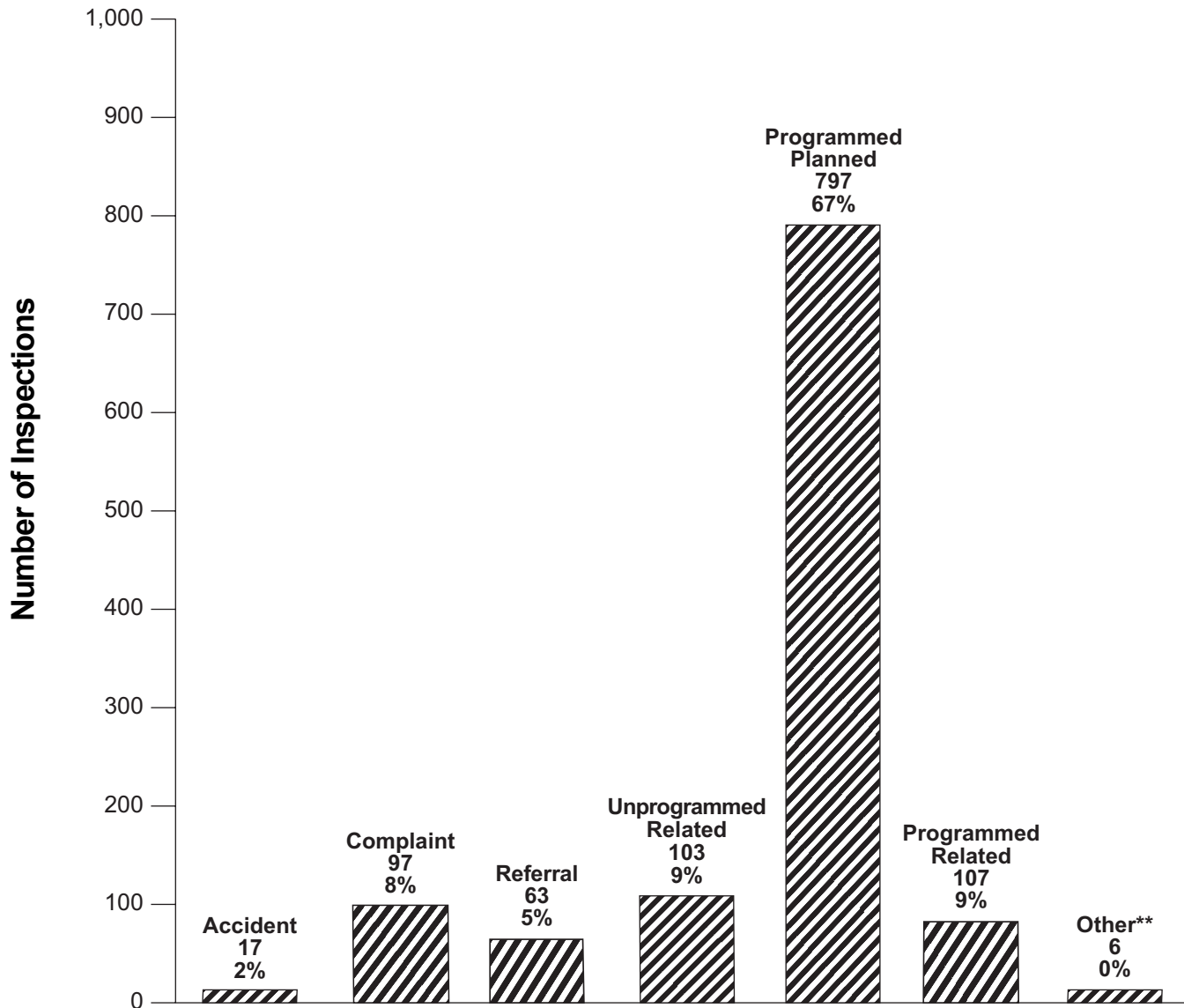
**N.C. Department of Labor
Occupational Safety and Health Division
October 2020–September 2021**

Construction Inspections by Type*

Type	Number of Inspections	Percent
Accident	17	2
Complaint	97	8
Referral	63	5
Followup	5	0
Unprogrammed Related	103	9
Programmed Planned	797	67
Programmed Related	107	9
Programmed Other	1	0
Monitoring	0	0
TOTAL	1,190	100

* N.C. data from the OSHA Express database, “Inspection Summary Report,” run 1-12-22.

Construction Inspections by Type and Percentage*



* N.C. data from the OSHA Express database, “Inspection Summary Report,” run 1-12-22.

** Other total includes “programmed other,” “followup” and “monitoring” construction inspections.

**N.C. Department of Labor
Occupational Safety and Health Division
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SEP County Construction Inspections by Type*

County	Accident	Complaint	Referral	Followup
Carteret	0	1	0	0
Edgecombe	0	1	0	0
Forsyth	0	1	1	0
Guilford	2	6	3	0
Iredell	0	4	0	0
Mecklenburg	4	11	5	1
Orange	0	2	1	0
Pitt	0	6	0	1
Robeson	0	0	0	0
Wake	1	16	5	0
Wilkes	0	0	0	0
Total	7	48	15	2

County	Unprogrammed Related	Programmed Planned	Programmed Related	Programmed Other**
Carteret	0	1	0	0
Edgecombe	0	0	0	0
Forsyth	0	179	29	0
Guilford	6	100	2	0
Iredell	0	10	3	0
Mecklenburg	21	135	15	0
Orange	0	0	2	0
Pitt	0	7	0	0
Robeson	0	0	0	0
Wake	20	98	28	1
Wilkes	0	0	0	0
Total	47	530	79	1

* Special Emphasis N.C. County from the OSHA Express database, “Inspection Summary Report,” run 1-12-22.

** “Programmed other” total also includes “monitoring” inspections.

Ratio for SWRV** Construction Inspections (Safety and Health Combined) *

Number of Inspections	SWRVs Cited	SWRV Ratio per Inspection
1,190	1,715	1.4

Construction Inspections by SEP County*

County	Number of Inspections	In-Compliance Rate	SWRV Ratio
Carteret	2	0	2.5
Edgecombe	1	0	0.0
Forsyth	210	44	0.9
Guilford	119	53	0.9
Iredell	17	53	1.4
Mecklenburg	192	37	1.3
Orange	5	40	1.2
Pitt	14	29	2.1
Robeson	0	0	0.0
Wake	169	31	2.1
Wilkes	0	0	0.0
Total Inspections	729	N/A	N/A

* N.C. data from the OSHA Express database, “Inspection Summary Report,” run 1-12-22.

** Serious, willful and repeat violations (SWRV).

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